



# THE FEDERATED REPUBLIC

## Constitution

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### Preamble

*We, the people of the Federated Republic, recognizing that legitimate government derives its authority solely from the consent of the governed; that individual rights precede and constrain all governmental authority; that transparency and accountability are prerequisites for democratic legitimacy; and that the diversity of our communities and the integrity of our federation are both worth protecting — do ordain and establish this Constitution.*

## Article I — Individual Sovereignty and Rights

### §1.1 Right to Courts and Legal Remedy

Every person may seek legal remedy for any rights violation before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not be used to make the right to a remedy illusory.

### **§1.2 Individual Sovereignty Floor**

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority for any limitation.

### **§1.3 Prohibition of Torture and Cruel Treatment**

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person within the Republic's jurisdiction may be subjected to any such treatment under any circumstances. This right is non-derogable under §1.19.b.

### **§1.4 Prohibition of Slavery and Forced Labor**

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Lawfully imposed prison labor and compulsory military service under the terms established by statute do not constitute forced labor under this provision. This right is non-derogable under §1.19.b.

### **§1.5 Civil and Political Liberties**

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly for compelling public-order purposes, subject to strict scrutiny and without discriminating on the basis of viewpoint. No government may compel expression or penalize expression through intermediaries it controls or has directed to act. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others. The Legislature establishes by statute any framework for exercising these rights, provided that framework does not burden the right itself.

### **§1.6 Equality and Non-Discrimination**

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status in the provision of any governmental benefit, the imposition of any burden, or the application of any law. Distinctions rationally related to a legitimate governmental purpose that do not turn on these characteristics are permissible. Distinctions that do turn on these characteristics require compelling justification and are subject to strict scrutiny. Age distinctions rationally related to developmental capacity, lifecycle considerations, or demonstrated actuarial risk are subject to rational basis review rather than strict scrutiny.

### **§1.7 Bodily Sovereignty and Privacy**

Medical decisions are the province of the individual and their chosen provider. The state may promote public health through information, licensing, and access; it may not compel medical decisions or penalize their exercise. Every person holds the right to privacy in their person, home, communications, and data. Searches, surveillance, and data collection by government require prior independent judicial authorization based on specific, articulable grounds. The Legislature establishes by statute the warrant framework, subject to the requirement of independent judicial oversight.

Communications and stored data receive equivalent protection to physical premises. Encryption is a lawful means of protecting private information and may not be prohibited. No government may impose civil or criminal liability on any person solely for receiving, assisting access to, or providing accurate information about medical care that was lawful where received.

### **§1.8 Property and Security of the Home**

Every person holds the right to own property and to security in their home. The state may take private property for public use only upon payment of just compensation determined by independent process, not by the taking authority. The home may not be entered without the occupant's consent or prior independent judicial authorization.

### **§1.9 Democratic Participation and Family**

Every citizen holds the right to vote, stand for office, and participate in the democratic processes of the Republic, subject to the eligibility requirements established in this constitution. Every person holds the right to marry and found a family, free from governmental discrimination on the basis of the characteristics listed in §1.6. Children born within and outside of formal partnership hold equal legal status.

### **§1.10 Right to Bear Arms**

The right to keep and bear arms for lawful purposes including self-defense is recognized. States may establish licensing and safety frameworks. No government may enact a categorical prohibition on the civilian ownership of arms. The Legislature and States may regulate the type, transfer, and carry of arms subject to the requirement that lawful ownership for self-defense remain available.

### **§1.11 Habeas Corpus**

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify the detention within the period established by statute, not to exceed 72 hours. No court may decline to hear a habeas corpus application. This right is non-derogable under §1.19.b.

### **§1.12 Rights of the Accused and Fair Trial**

Every person accused of a criminal offense holds: the right to be informed promptly of the charges; the right to counsel of their choosing, or to competent, adequately resourced counsel appointed at public expense where they cannot afford representation; the right to adequate time and means to prepare a defense; the right to examine witnesses; the right to silence without adverse inference; and the right to a speedy trial. No person may be penalized — by sentence enhancement or otherwise — solely for exercising the right to trial. Bail may not be used as punishment; its purpose is ensuring appearance and public safety, calibrated to individual circumstances. The Legislature establishes by statute the procedural framework for criminal proceedings, subject to the requirements of this provision. Where any systematic or automated methodology is used to generate evidence, the accused has the right to examine that methodology in full.

### **§1.13 Right to a Public Trial**

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings may be held in camera only to the minimum extent necessary to protect a compelling interest identified in advance by

the court; the existence of any proceeding may not be concealed. This right is non-derogable under §1.19.b.

#### **§1.14 Freedom from Retroactive Criminal Law**

No person may be convicted of an act that was not a criminal offense when committed, or subjected to a penalty greater than that applicable at the time of the offense. No criminal law may be applied retroactively to the disadvantage of the accused. This right is non-derogable under §1.19.b.

#### **§1.15 Double Jeopardy**

No person may be tried or punished twice for the same offense following a final acquittal or conviction. Same offense means the same conduct regardless of how it is labeled or charged; the protection applies to any charge that does not require proof of an element distinct from those required for the original charge. The Legislature defines by statute the scope of this protection above this constitutional floor, including its application across jurisdictions.

#### **§1.16 Social Assistance Floor**

Every Inhabitant is entitled to access the Republic's social state systems under Article XII. No government may exclude any person from social assistance on the basis of the characteristics listed in §1.6. The Legislature establishes by statute the content and administration of social assistance, subject to the adequacy standards certified under §12.1.

#### **§1.17 Education**

Every child has the right to education adequate to enable full civic participation. The state must ensure this education is available and accessible. Parents hold the right to direct the education of their children within the framework of public educational standards. The Legislature establishes by statute the content and funding of public education, subject to the adequacy standard of genuine civic preparation.

#### **§1.18 Environmental Obligations**

Government holds an obligation not to cause environmental harm to persons within its jurisdiction through its own actions or through the actions of those it licenses. The Legislature establishes by statute the framework for environmental protection, and may not enact statutes that systematically permit environmental harm to defined communities. This provision does not require the achievement of any particular environmental outcome; it requires genuine governmental action toward environmental protection proportionate to identified harms.

#### **§1.19 Emergency Derogation**

No emergency — however severe — suspends the Individual Sovereignty Floor in full. Temporary derogation of certain rights is permitted only under the strict conditions of this section; the rights enumerated in §1.19.b may not be derogated under any circumstances.

##### **§1.19.a Emergency Derogation — Declaration Requirements**

Emergency derogation of Article I rights requires a declaration specifying the nature of the emergency, which rights are limited, the geographic scope, and the duration; blanket declarations are constitutionally invalid. The declaration is published to the NRS immediately.

**§1.19.b Non-Derogable Rights**

These six rights are absolute under any circumstances: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.11); the right to a public trial (§1.13); no retroactive punishment (§1.14); and non-refoulement (§1.21). No emergency declaration, executive order, or legislative act may derogate any of these rights. No emergency measure, regardless of its stated purpose, may be applied in a discriminatory manner on the basis of race, ethnicity, religion, or national origin; any such application is constitutionally void.

**§1.19.c Monitor Continuity**

The three Monitors continue to operate with full constitutional authority throughout any emergency — they cannot be suspended or have their mandate reduced by emergency declaration.

**§1.19.d Automatic Expiry and Judicial Review**

Emergency measures lapse automatically at the expiry of the Declaration. The Legislature may, before a Declaration expires, extend it for one additional period not to exceed 60 days by 2/3 concurrent vote of both chambers; the extension is published immediately to the NRS and no further extension is available under this provision. Judicial review of any emergency measure is available to any citizen at any time, and courts may rule during the emergency that a specific measure is unconstitutional.

**§1.19.e No Permanent Emergency**

No emergency measure may be made permanent by legislative act. Every emergency measure lapses automatically at the expiry of the Declaration unless re-enacted through the ordinary legislative process. The Legislature may not re-declare an emergency measure within 60 days of its expiry. A new emergency declaration covering substantially the same geographic scope and affecting substantially the same rights as a declaration that expired within 60 days is subject to the same bar, regardless of how the new emergency is labeled; the EM publishes an assessment of whether any new declaration constitutes a relabeled continuation of the prior emergency within 14 days of its issuance. After 60 days, re-declaration requires a 2/3 majority of both chambers certifying continued necessity.

**§1.20 Right to Seek Asylum**

Every person who reaches the Republic's jurisdiction has the right to claim asylum and have that claim determined by an independent process under §6.3. The manner of entry does not affect this right. An asylum seeker is an Inhabitant of the Republic from the date of claim and holds all rights in this Article.

**§1.21 Non-Refoulement**

No person within the Republic's jurisdiction may be returned, expelled, or extradited to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the nature of the receiving territory's government. This right is non-derogable under §1.19.b.

## Article II — The Dual Executive

**§2.1 The Legat Consul — Domain and Term**

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office and must hold no federal felony conviction. No other

eligibility requirement applies. The Legat Consul holds enumerated authority over: military command and force employment; foreign affairs, treaty negotiation, recognition of foreign governments, and the receipt of foreign delegations; intelligence; trade agreements subject to §2.4; and appointments within the Legat Consul's domain. Where the domain of a proposed action is disputed, the Council of Ministers under §2.14 is the first forum; pending resolution, the Civic Consul's residual authority governs except for matters expressly enumerated in this provision. During active military operations, the Legat Consul's domain governs operational decisions; either executive may petition the SC for an expedited domain determination. The Legat Consul serves a single non-renewable term of six years. Upon expiration of the term, all authority transfers immediately to the incoming Legat Consul. The outgoing Legat Consul retains no access to classified information, government systems, or official functions beyond the day of transfer.

### **§2.2 Military Authorization Framework**

The Legat Consul may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, all use of military force requires legislative authorization. The Legat Consul must notify both chambers and the Civic Consul promptly upon any use of force, not to exceed 24 hours; the Legislature may define a shorter period by statute. Legislative authorization expires unless affirmatively renewed at intervals the Legislature defines by statute; the constitutional default on expiry is cessation of all operations — the burden is always on authorization, never on termination. Military expenditure requires Civic Consul certification throughout; expenditure without Civic Consul certification is void. All military operations must state and be consistent with an authorized purpose under §14.1.

### **§2.3 Consular Intelligence and Veto**

The Legat Consul directs foreign intelligence. No intelligence operation may be conducted against Republic citizens within Republic territory on the Legat Consul's authority; such operations require independent judicial authorization. The Legat Consul may veto legislation that raises a genuine constitutional concern within the Legat Consul's security domain — military operations, intelligence, treaty obligations, or border security. A general or speculative security connection is insufficient. Either Speaker may petition the SC for an expedited domain determination of any disputed veto; the SC must rule within 7 days of such petition. Under §9.1, either Speaker may request an EM assessment of the domain question, which the SC may consider as expert evidence. Where the SC confirms the veto falls outside the Legat Consul's defined domain, the veto is void and the bill proceeds to ordinary enactment without Legat Consul assent. Where the SC confirms the veto is within domain, the ordinary 2/3 override threshold applies.

### **§2.4 Consular Domain Operations**

The Legat Consul negotiates and concludes trade agreements. Civic Consul written concurrence is required only for provisions imposing national treatment obligations within Republic territory, provisions requiring new domestic legislation, or provisions creating direct obligations on domestic persons. All other trade terms are within the Legat Consul's sole authority. The Civic Consul must respond to any request for concurrence within the period defined by statute; where no statutory period has been established, the constitutional default is 30 days. Where the Civic Consul does not respond within the applicable period, concurrence is deemed given for provisions that do not require new domestic legislation; silence on provisions that require new



domestic legislation is deemed withheld. Where Civic Consul concurrence is withheld on a specific provision, that provision may be transmitted to the Assembly as ordinary legislation while the remaining agreement proceeds to Senate ratification independently. The Legat Consul nominates senior domain officers — Director of Intelligence, Director of Foreign Affairs, Director of Defense — from a pool of qualified candidates maintained by the Elections Panel under §9.12. The Legislature defines qualifications and confirmation procedures for each office by statute; Acting appointments may be made pending confirmation for the period and under the conditions the Legislature defines. Indefinite circumvention of Senate confirmation through Acting appointments is constitutionally prohibited.

### **§2.5 The Civic Consul — Domestic Executive Domain**

The Civic Consul holds residual executive authority over all functions not enumerated to the Legat Consul. To hold the office of Civic Consul, a person must have been a citizen for at least 7 years at the time of taking office and must hold no federal felony conviction. No other eligibility requirement applies. The Civic Consul answers to the Assembly through the confidence mechanism and does not require consular confirmation for the exercise of the domestic domain. The Civic Consul's domestic authority includes: all domestic policy and regulatory frameworks; the annual budget, which must originate with the Civic Consul and pass the Assembly; certification of military expenditure; the civil service; and administration of the social state under Article XII. The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to the constraints of Article I and renewable Assembly approval at intervals defined by statute. The Legat Consul has no role in domestic emergencies. The Civic Consul has the right to be informed on national security matters that bear on domestic interests; no classification may be used to withhold such information from the Civic Consul where it affects the exercise of the domestic domain.

### **§2.6 Civic Consul Accountability and Formation**

The Civic Consul is accountable to the Assembly. The Assembly may remove the Civic Consul only through a constructive vote of no confidence: a single vote that simultaneously removes the sitting Civic Consul and installs a named replacement, by absolute majority of full seated Assembly membership. A confidence vote that does not name and elect a successor has no constitutional effect. The Civic Consul must be and remain a serving member of the Assembly throughout their tenure; removal or resignation as Civic Consul does not affect Assembly membership, and a former Civic Consul who remains a member of the Assembly reverts to that role. The Civic Consul is subject to all Assembly membership rules, including term limits and the cooling-off period under §3.2. No person may serve more than 8 years in total as Civic Consul across all periods of service; this limit is cumulative and permanent regardless of interruption. The Assembly elects the Civic Consul by absolute majority within the period defined by statute following any general election or vacancy; where no statutory period has been established, the constitutional default is 21 days. If the Assembly does not elect a Civic Consul within that period, the Civic Consul designates an Acting Civic Consul from the confirmed ministers; where no ministers have been confirmed, the Civic Consul designates a serving Assembly member; the designation is published to the NRS and confirmed by the LM. The Senate may, by 2/3 supermajority, designate a serving Assembly member as Civic Consul if the Assembly has failed to elect one within the statutory period; Assembly election of a Civic Consul by absolute majority terminates any Senate designation. Where no Civic Consul has been elected by absolute majority and the Senate has not designated a Civic Consul

within 45 days of the Assembly failing to elect one within the statutory period, the Elections Panel administers a public dissolution referendum; the question is whether the people wish to dissolve the Assembly and hold a new election; the referendum is administered with a minimum 30-day campaign window; a simple majority decides. If the Assembly elects a Civic Consul by absolute majority at any point before the dissolution vote is certified, the referendum is moot and concludes without effect. Where the dissolution vote passes, dissolution takes effect from the moment of Elections Panel certification and is published to the NRS; a new Assembly general election follows under the ordinary electoral process; the Acting mechanism continues until the new Assembly elects a Civic Consul. Where the Civic Consul is temporarily unable to exercise authority, the Civic Consul's designated Acting Civic Consul serves with authority limited to maintaining existing policy and emergency functions; Acting status ends when the Civic Consul resumes their duties or a new Civic Consul is confirmed by the Assembly.

### **§2.7 Civic Consul Legislative Instruments**

Where the Civic Consul withholds assent from a bill passed by both chambers, the Civic Consul exercises a suspensive veto by returning the bill to the Legislature within the period defined by statute with a written statement of objection specifying constitutional, fiscal, or operational grounds, published to the NRS. The bill is suspended from taking effect during the return and reconsideration period. The Legislature may override the suspensive veto by 2/3 of both chambers in a concurrent vote; a successfully overridden bill takes effect without Civic Consul assent. Where the Legislature does not hold an override vote within the period defined by statute, the bill lapses for that session and may be reintroduced in the next. The suspensive veto may not be used on the annual budget, bills implementing a constitutional obligation, or emergency legislation. The Civic Consul may also object on specific solvency grounds — the bill would cause or materially worsen a structural deficit. Requires MA assessment; the Assembly may override by simple majority after receiving the assessment. If the Civic Consul neither signs nor objects within the legislative review period, the bill is enacted. Silence is not a veto. Both executives review legislation concurrently from the date of final passage; periods and procedures are defined by statute.

### **§2.8 Duty of Refusal**

No civil servant, military member, or person acting under direct federal authorization in the performance of a specific federal function may comply with an order from either executive that would require violation of any constitutional provision or statute. Refusal of such an order creates no civil or criminal liability and is no basis for dismissal or penalty. The refusing person may report the order to the EM, which may investigate and publish findings to the NRS. Any penalty imposed for a lawful refusal is itself a constitutional breach. The Legislature establishes by statute the framework for protecting and supporting civil servants who exercise this duty.

### **§2.9 Consular Succession and Incapacity**

Full succession activates on Consular death, resignation, removal, or certified permanent incapacity. The Senate Speaker holds the office of Legat Consul from the moment the triggering event is published to the NRS — no active assumption is required or permitted; the transfer is instantaneous and self-executing by constitutional operation. Where the Senate Speaker is simultaneously unable to serve, the Senate Deputy Speaker holds the office from the same moment by the same operation. Where both are simultaneously unable to serve, the most senior Senator by



continuous Senate service holds the office from that moment; where two or more Senators have equal continuous service, the oldest by age holds the office. The Legislature or Senate may by statute or standing order designate a further succession line beyond this constitutional floor. Upon NRS publication of any triggering event, the military chain of command recognizes the constitutional transfer immediately; any order issued in the name of the prior Legat Consul after that moment is constitutionally void. A successor serves the remainder of the current Legat Consul's term; service by succession does not consume the successor's own eligibility to stand at the next election. Where the Legat Consul is temporarily unable to exercise authority, the EM and LM jointly assess capacity and, on joint assessment published to the NRS, Acting Consular Authority transfers to the Senate Speaker without vacating the Speaker's Senate seat by constitutional operation from that moment. Acting authority ends when the Legat Consul publishes a restoration declaration to the NRS.

#### **§2.10 Executive Transparency**

Both executives must publish all official acts — orders, certifications, vetoes, objections, determinations, and refusals to certify — to the NRS within the period defined by statute. No executive may classify, delay, or suppress publication of an act this constitution requires to be published. Acts of non-consent — refusals to certify, objections, escalation denials, and declinations to act within a constitutional mandate — carry the same attribution and publication requirements as acts of authority. An executive who declines certification, withholds approval, or refuses to perform a constitutionally required function is constitutionally responsible for that act to the same degree as an executive who issues an order. The NRS record of every executive act of non-consent is permanent, attributed to the individual officer, and may not be reclassified or removed. A late-published act is not void, but late publication is a constitutional compliance breach.

#### **§2.11 Emergency Governance**

Where the Assembly is unable to function for an extended period — as defined by statute — the Senate may assume joint emergency legislative authority for three functions only: election administration, social state funding continuity, and active national security obligations. Where the Elections Panel is unable to function, the EM and LM jointly certify that incapacity and publish it to the NRS; from that moment the Senate administers federal elections under this provision until the Elections Panel is restored and the restoration is published to the NRS. All Senate emergency actions require co-signature of the Acting Civic Consul and are published to the NRS. This authority expires automatically when a new Assembly is seated. In catastrophic circumstances where the Legislature cannot convene, expedited activation of the Senate's emergency legislative authority under this section is available on joint certification by the Acting Civic Consul and the Chief Justice — or, where the Chief Justice is unavailable, the most senior Associate Justice by length of continuous SC service — published to the NRS.

#### **§2.12 Clemency**

Each executive holds clemency authority within their own domain only. Consular clemency covers military law and national security offenses. Civic Consul clemency covers domestic offenses. Neither may pardon offenses within the other's domain. Self-clemency is absolutely prohibited for all constitutional officers; an attempted self-clemency is void and itself a constitutional violation. No clemency may be granted for offenses in which the granting executive was a participant or direct beneficiary.

Before any grant, the EM publishes a factual background report to the NRS. A clemency grant made before the EM report is published is void and of no legal effect. Every petition, report, and grant or decline is published permanently to the NRS. Every grant is subject to cross-chamber transparency review. Group amnesty requires legislative action; no executive may grant group amnesty.

### **§2.13 Consular Removal**

The Legat Consul may be removed on two independent tracks. Under the legislative track, 2/3 of both chambers in a concurrent vote on grounds of constitutional breach, demonstrated permanent incapacity, or conviction for a disqualifying offense. Either chamber may request a JMC assessment as part of the proceedings; any such assessment is published to the NRS. Under the popular track, a Senate majority may refer the question to a national recall referendum administered within the period defined by statute. The Legat Consul is removed if the referendum achieves 60% of votes cast under §13.4 with a minimum 55% citizen participation. A failed referendum may not be re-initiated within the same Legat Consul's term. The Senate Speaker holds Acting Consular Authority from the moment of Senate referral published to the NRS — no active assumption is required or permitted. The military compliance obligations established in §2.9 apply to this transfer.

### **§2.14 Council of Ministers**

The Council of Ministers comprises the Legat Consul's domain officers and the Civic Consul's ministers meeting jointly as a standing cross-executive coordination body. The Council is the primary forum for matters that cross executive domains. The Council makes recommendations and coordinates positions; it does not exercise executive authority. A summary record of each session is published to the NRS within the period defined by statute. The existence and general subject of each session may not be classified. Operational procedures are defined by statute. In a cross-domain emergency — a crisis whose effective management requires unified operational authority across executive domains — either executive may propose a temporary operational lead designation to the Council of Ministers; the other executive must respond in writing within twelve hours; failure to respond within twelve hours is treated as an objection for the purposes of this provision; concurrence makes the designation effective and it is published to the NRS immediately with both executives' attributed positions; objection or non-response refers the dispute to the SC under §2.15 for expedited review. A temporary lead designation does not extinguish the other executive's domain authorities or certification functions — it assigns operational coordination, not constitutional supremacy. Either executive may petition the SC directly for emergency resolution of a coordination failure; the SC must rule within the period defined by statute, not to exceed 48 hours. Judicial review of any lead designation is conducted after the emergency is stabilized, not during it; courts do not govern active crisis management.

#### **§2.14.a Coordination Failure Protocol**

Where both executives are acting within their respective domains but their actions are materially incompatible — creating an operational deadlock not resolvable as a domain dispute under §2.4 or an emergency under §2.14 — either executive may declare a coordination failure by written NRS notice. Upon declaration, the matter is transmitted simultaneously to the Assembly Speaker and Senate Speaker jointly, and the Council of Ministers has 14 days to produce a joint resolution. The Legislature may resolve the deadlock by concurrent resolution of both chambers at any point within 30 days of the declaration — a concurrent resolution under this provision binds

both executives to its terms for the duration of the impasse only and does not alter permanent domain boundaries. A Council of Ministers joint resolution published within the 14-day window closes the process; the Legislature takes no further action. Where neither the Council of Ministers nor the Legislature acts within 30 days of the declaration, the Civic Consul's coordination authority governs the cross-domain interaction until either the executives reach agreement or the Legislature acts; the Legat Consul retains full authority within the Consular domain throughout and the default applies to how the two domains interact, not to the substance of matters within either domain.

### **§2.15 Constitutional Continuity**

Where a conflict between constitutional actors creates a risk of suspension of lawful governance or constitutionally mandated essential services, the applicable constitutional default is continuity of lawful governance at existing scope, pending formal resolution. No constitutional actor may use a refusal to certify, approve, or coordinate as a mechanism to achieve the functional suspension of a constitutionally mandated obligation. The burden of justifying a disruption to essential government functions falls on the actor whose conduct creates the risk of disruption — not on the actor seeking to maintain continuity. The SC holds expedited review jurisdiction over any constitutional dispute in which either executive, either chamber, or the JMC reports that continuity of lawful governance is at immediate risk; the Court must act within seven days of such certification; where the SC fails to rule within seven days, the position of the continuity-seeking party is upheld by constitutional operation pending any subsequent ruling. Continuity protections apply to: military operations with active legislative authorization; social state obligations; Monitor operations; NRS availability; and electoral administration.

## **Article III — The Legislature**

### **§3.1 The Legislature**

The Legislature comprises two chambers: the Assembly and the Senate. All legislation originates in the Assembly. The Senate reviews, may amend within the subject matter of the bill, and must act on every Assembly-passed bill within the period defined by statute — inaction triggers automatic deemed approval. In the absence of a statutory period, the Senate must act within 90 days of receipt. Neither chamber may indefinitely delay business assigned to it by this constitution.

### **§3.2 The Assembly**

The Assembly is the proportionally elected chamber. Both States and Territories send voting members. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory. The constituency divisor is established and may be adjusted by statute, subject to the minimum-seat guarantee. The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment. The LM audits the census and allocation process. The Assembly Speaker is elected by the Assembly from its own members by absolute majority and does not hold a place in the Legat Consul succession line. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures. Members serve two-year terms. No member may serve more than six consecutive terms without sitting out one full electoral cycle; no cumulative lifetime restriction applies after the cooling-off period. Legislative compensation is set by independent formula, not by the Legislature itself; all member financial interests are disclosed to the EM and

published to the NRS. Mid-term vacancies in Assembly seats are filled by special election administered by the Elections Panel; the Legislature establishes timing and procedures by statute, ensuring no seat remains vacant beyond a reasonable period. The Assembly may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately.

### **§3.3 Electoral Districts**

States draw their own Assembly district maps subject to five criteria: population equality within reasonable tolerance; geographic contiguity; compliance with §1.6 non-discrimination; no intentional dilution of minority voting power; and reasonable compactness. Maps may not be drawn using voter political affiliation data, voting history data, incumbent residence, or racial composition as a primary criterion. The LM reviews all maps for compliance and publishes findings to the NRS. Where a map fails, the Elections Panel draws an interim compliant map that takes effect at the next election and is retired when the State submits a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen, State government, or parliamentary minority may challenge a map before the SC.

### **§3.4 Legislative Standards**

Every bill must address a single, clearly defined subject. Any member or approval body in the legislative process may request an EM assessment of single-subject compliance, published to the NRS. The full text of every bill must be published to the NRS for a minimum period defined by statute before any final passage vote; a substantially amended bill resets the clock. The Legislature must sit for a minimum number of days per year defined by statute; emergency sessions may be called by the Civic Consul or by petition of 1/3 of either chamber. Members must disclose all financial interests to the EM. The Legislature must establish a joint ethics committee with authority to sanction and refer members; removal requires 2/3 of the relevant chamber; under §9.1, the chamber may request an EM assessment to inform the proceeding. The Republic provides standard residential accommodation at the Seat of Government to every serving member of both chambers during their period of service. The standard is defined by statute and applies equally to all members regardless of tenure, seniority, or political affiliation. Legislative compensation and accommodation standards may not be set by the Legislature itself.

### **§3.5 The Senate**

The Senate comprises two senators per State regardless of population, elected for six-year staggered terms. At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath. No senator may serve more than two consecutive terms without sitting out one full term; no cumulative lifetime restriction applies after the cooling-off period. The Senate Speaker is elected by senators and may not serve more than two consecutive full Senate terms as Speaker without sitting out one full Senate term. The Senate defines its own internal procedures. The Senate may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately. A State may establish by its own law a recall mechanism for its senators; where a senator is recalled under State law the seat is treated as vacant under this Constitution. The Senate holds exclusive authority over: judicial confirmation; treaty ratification by 2/3 of full seated membership; and, in the

absence of a functioning Elections Panel, administration of the consular election. The Senate may not initiate legislation; all bills originate in the Assembly.

### **§3.6 Treaty Ratification and Withdrawal**

Treaty ratification requires 2/3 of the full seated Senate. Where a treaty fails ratification, standalone domestic provisions may be transmitted to the Assembly as ordinary legislation unless the treaty is bilateral and its obligations are interdependent, in which case it must be renegotiated or abandoned in full. The Legat Consul initiates treaty withdrawal by published NRS notice. For general treaties, the Senate may block withdrawal by simple majority within the notice period; if the Senate does not act, withdrawal takes effect. For mutual defense treaties, the Senate must affirmatively confirm withdrawal; if the Senate does not confirm, the treaty remains in force. Indigenous treaties under Article XVI may not be unilaterally withdrawn.

### **§3.7 Legislative Process and Passage**

Bills pass by absolute majority of the full seated membership of both chambers. Higher thresholds apply to constitutional amendments, veto overrides, removal proceedings, and other matters specified in this constitution. The Speaker of each chamber must publish the final text of every enacted law to the NRS within the period defined by statute. All prior versions, committee reports, Monitor findings, and veto records are indexed alongside the enacted text. Where the constitution requires the Legislature to enact specific legislation and the Legislature fails to do so, the LM publishes a non-compliance finding; the mandate becomes justiciable in the SC; and, for mandates whose non-fulfilment directly impairs the exercise of a right guaranteed in Article I, affected parties may bring direct constitutional claims.

### **§3.8 Legislative Oversight**

All three Monitors have full access to legislative records, committee deliberations, voting records, and draft legislation; the Legislature may not withhold records from the Monitors. The LM publishes a constitutional compliance analysis of any enacted law during the legislative review period; members may request LM analysis of any bill at any stage; the LM does not initiate pre-enactment review on its own motion. Standing committees are mandated for constitutionally assigned functions and may not be abolished while they hold a constitutional mandate. Legislative privilege protects members from civil proceedings arising from acts performed in their legislative capacity but does not extend to criminal conduct or acts the EM has assessed as constitutional breaches.

### **§3.9 Independent Statutory Agencies**

The Legislature may establish independent agencies operating outside the authority of both executives. Where this Constitution assigns a function to an independent agency, the Legislature must establish it. Directors of constitutionally mandated independent agencies serve fixed terms defined by statute and are removable for cause only; cause must relate to conduct, competence, or a disqualifying offense under §3.12 and may not include policy disagreement with the Legislature or either executive. The appointment process and oversight mechanism for each agency are established by statute in a manner consistent with this independence protection.

### **§3.10 Impeachment**

The Assembly may impeach officers serving in the Legat Consular domain and inferior court judges. The Legat Consul is removed exclusively under §2.13; the Civic Consul



under §2.6; SC justices under §4.3.b; legislative members by their own chamber. A 1/3 Assembly minority may open an inquiry; full impeachment requires absolute majority of full seated membership. Articles of Impeachment are published permanently to the NRS and transmitted immediately to the Senate. The subject official continues in office pending the Senate trial, relieved of executive functions from the date of Assembly passage. The Senate trial is public and recorded on the NRS. Conviction and removal requires 2/3 of full seated Senate membership; the Senate may additionally bar the convicted from future federal office by simple majority. Acquittal is final on the same conduct. Criminal liability remains separately pursuable.

### **§3.11 Inviolability of Electoral Mandates**

Elected constitutional officers serve their constitutionally defined terms. No act of the Legislature, either executive, any court, any Monitor, or any administrative body may shorten, suspend, or terminate an elected mandate. The only permitted exceptions are: expulsion by the relevant chamber under §3.2 or §3.5; recall under a mechanism established by State law as recognized in §3.5; and impeachment and removal under §3.10. Any mechanism enabling the people themselves to shorten an elected mandate not already provided in this Constitution requires a constitutional amendment under Article XVII and may not be established by ordinary statute.

### **§3.12 Disqualifying Offense**

A disqualifying offense, wherever that term appears in this Constitution, means a conviction for a federal felony under the laws of the Republic. No state-level or foreign conviction constitutes a disqualifying offense for constitutional purposes. A pardon granted under §2.12 does not restore constitutional eligibility unless the pardoning instrument expressly states that eligibility is restored and the EM certifies the restoration to the NRS. Where a conviction is under appeal at the time a relevant constitutional determination is made, the conviction stands for constitutional purposes unless and until it is reversed by a court of competent jurisdiction.

### **§3.13 Continuity of Constitutionally Mandated Offices**

For every office established by this Constitution with a fixed term, the confirmed or elected successor's term begins at the precise moment the incumbent's term concludes — no gap exists between the end of one term and the commencement of the next. The selection and confirmation processes for each such office must be initiated and completed with sufficient lead time to ensure seamless succession before the incumbent's term ends. Any person serving in an acting capacity for a constitutionally mandated office during an unexpected vacancy must be otherwise eligible for that office — possessing all substantive qualifications for the role — with the sole exception of not having completed the applicable confirmation or election process. The acting mechanism for each office is defined in the provisions governing that office.

## **Article IV — The Judicial Architecture**

### **§4.1 Court Structure**

The Republic's judiciary operates at three levels: district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute. The abolition of an inferior court does not take effect as to any judge currently serving on that court until their term expires or they are removed for cause under §4.2; judges whose courts are abolished may be reassigned

to other inferior courts by the Civic Consul with Senate confirmation at 2/3. States may maintain specialized court structures; any constitutional question arising in any proceeding may be referred to the SC. Courts act only on cases brought by a party with a concrete, articulable injury. Judges may not issue advisory opinions. Organizational standing is available where at least one member would individually have standing and the claim is germane to the organization's established constitutional purpose.

#### **§4.2 Judicial Appointments and Independence**

Any person meeting the qualifications for inferior court judges defined by statute may apply directly to the Elections Panel; the Elections Panel applies those qualifications and enters qualifying applicants into the pool; the JM's ongoing audit of the Elections Panel encompasses the administration of the inferior court judge pool. Exceptions to pool eligibility — including persons currently holding government positions, those with disqualifying financial interests, and those removed from a court within a recent period — are defined by statute. The Civic Consul nominates inferior court judges from the pool maintained by the Elections Panel under §9.12. The Civic Consul must nominate within the period defined by statute following a vacancy, not to exceed 90 days where no statutory period has been defined. The Senate confirms by a 2/3 supermajority. Inferior court judges serve a single non-renewable term of 12 years and may be removed only for cause. Cause for judicial removal must relate to conduct, competence, or a disqualifying offense under §3.12; policy disagreement with judicial decisions does not constitute cause, consistent with the principle established in §3.9. The Legislature may establish a mandatory retirement age by statute, not below 70. Judicial removal occurs through three tracks: legislative removal by 2/3 of both chambers following an EM assessment of constitutional breach or demonstrated incapacity, which either chamber may request; judicial discipline through a process established by statute under SC oversight; or criminal conviction for a disqualifying offense. No public official may direct, threaten, or seek to influence a judge's decision in any pending matter. Judicial compensation may not be reduced during a judge's term.

#### **§4.3 The Supreme Court**

The Supreme Court consists initially of nine justices organized into three staggered classes, each serving a single non-renewable 12-year term. The Legislature may increase the number of justices by statute requiring 2/3 of both chambers; any seat added must be filled within 18 months from the statute's effective date or expires by operation of law. The Legislature may decrease the number only by 2/3 of both chambers, effective through natural attrition only, never by removing a sitting justice. The Court may not fall below three justices. Where the Court is equally divided, the challenged ruling of the lower court or government body stands.

##### **§4.3.a Supreme Court Quorum**

A majority of the SC's seated justices — including any Temporary Associate Justices — constitutes quorum for ordinary decisions. Constitutional questions require a minimum of five justices regardless of total seated membership. The Legislature establishes by statute the procedure for filling any remaining Temporary Associate Justice positions.

##### **§4.3.b Supreme Court Justice Removal**

A Supreme Court justice may be removed only for cause. Three grounds constitute sufficient cause: a published EM finding of constitutional breach in the exercise of

judicial authority; certified permanent incapacity jointly certified by the EM and LM; or conviction for a disqualifying offense. Removal requires a 2/3 vote of both chambers in a concurrent vote following publication of the relevant ground. No removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. Judicial disagreement — however profound — does not constitute grounds for removal; the independence of SC judicial judgment is absolute and may not itself be invoked as grounds for removal. Upon removal, the most senior Appellate Court judge auto-designates as Temporary Associate Justice under §4.4 until the vacancy is filled.

#### **§4.4 Supreme Court Selection**

SC justices are nominated by the Civic Consul from the open SC Candidate Registry maintained by the Elections Panel under §9.4.b — any eligible citizen who applies and meets the qualification criteria is entered. The Civic Consul nominates within the period defined by statute following a vacancy (not to exceed 90 days for anticipated vacancies, 60 days for unanticipated vacancies). The Senate must vote within the period defined by statute following nomination (not to exceed 120 days); the JM's ongoing audit of the SC Candidate Registry is available on the NRS and the Senate may consider any published JM findings on the nominee; no deemed confirmation applies, but failure to vote within that period is certified by the LM as a constitutional compliance breach. If the Senate declines, the Civic Consul nominates again within the period defined by statute. Where the Civic Consul fails to nominate within 30 days of an LM assessment of constitutional breach under this section, the Senate may select a nominee directly from the SC Candidate Registry by 2/3 vote of full seated membership; a Senate selection under this provision requires no further Civic Consul nomination and proceeds directly to confirmation. The confirmed justice serves a single non-renewable 12-year term from the date of confirmation. A mid-term replacement serves only the remainder of the original term. At founding, the nine initial justices are confirmed simultaneously and assigned to their three classes by public lot. The Legislature must by statute establish a recusal framework; in the absence of statute, a justice must recuse where impartiality could reasonably be questioned. Upon any SC vacancy, the most senior Appellate Court judge by continuous service is automatically designated Temporary Associate Justice within 5 days — without nomination or confirmation — holding full voting rights until the vacancy is filled. A Temporary Associate Justice may not stand as a candidate for the seat they are temporarily filling.

##### **§4.4.a Senate Bypass — Public Confirmation**

Where the LM has assessed and reported a Senate breach under §4.4, the Civic Consul may — with 2/3 Assembly consent — place the serving Temporary Associate Justice on the next federal electoral period ballot for public confirmation. Confirmation requires 60% of votes cast; the justice's seniority-based designation is published to the NRS as ballot information. If confirmed, the justice serves the remainder of the original term and the Senate's confirmation authority for that seat is extinguished. If not confirmed, the justice steps down, the next most senior Appellate Court judge auto-designates, and the process may repeat. Senate confirmation of a registry nominee before the public vote is certified ends the bypass immediately.

#### **§4.5 Judicial Review and Scope**

Courts have authority to declare legislative acts, executive orders, and administrative decisions unconstitutional and void. No political actor may override a constitutional ruling. The SC identifies the constitutional defect; the Legislature may respond by

enacting legislation that addresses it. Courts decide constitutional questions, not policy questions — a statute that is constitutionally permissible but poor policy is not the court's concern. Where a statute is ambiguous, courts apply the interpretation most consistent with this constitution. Courts may not rewrite clear statutory language. Monitor findings published to the NRS are admissible and must be given due consideration; where a court's conclusions differ from a prior finding, the court must address the inconsistency in its written decision. Any person with a concrete, articulable legal injury has the right to seek relief from a court of competent jurisdiction; the Legislature may not structure the judicial system in a manner that leaves any category of legal injury without a forum for relief. The SC has original jurisdiction over constitutional disputes between States, between a State and the federal government, and over constitutional challenges to federal statutes. A four-justice emergency panel drawn by rotation holds jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute, not to exceed 48 hours.

#### **§4.6 Judgment Recognition**

Judicial judgments, official records, and authenticated documents are recognized across all jurisdictions within the Republic. A judgment valid in one jurisdiction must be recognized in all others. Non-recognition grounds are exhaustive: the issuing court lacked jurisdiction; the judgment was obtained by fraud; or enforcement would require an act defined by the Legislature as categorically unenforceable. Judgments contrary to Article I are void by operation of §17.4. A judgment or status order published to the NRS is self-authenticating in any Republic court and takes immediate effect without re-registration. No State or Territory may discriminate in recognition based on the nature of the parties or the subject matter recognized by the issuing jurisdiction.

#### **§4.7 Jury Service**

Citizens are required to serve on juries when called. Jury service is compensated at a rate the Legislature defines by statute. Unexcused refusal is subject to civil consequences the Legislature defines. Jury service does not constitute forced labor under §1.4.

## **Article V — Citizenship and National Identity**

### **§5.1 Citizenship**

Citizenship is acquired by birth, by parentage, or by naturalization. A child is automatically a citizen if at least one parent is a citizen or legal resident at birth. Citizens acquire their full citizenship rights, including the right to vote and stand for office, at 18. Where a child would otherwise be stateless, citizenship is granted regardless of parental status. No citizenship may be stripped from a natural-born citizen. Where a child born on Republic territory would hold no other citizenship, they are eligible for legal residency from birth, with all Inhabitant years counting toward the naturalization residency requirement.

#### **§5.1.a Naturalization and Service Path**

A legal resident may earn citizenship after the continuous residency period and clean legal record established by statute, upon passing a standardized assessment of civic and constitutional proficiency established by statute. A legal resident may alternatively earn citizenship through honorable completion of military or national

service. The assessment tests knowledge of constitutional principles and civic structure — not political opinions or cultural loyalty. It is administered by a statutory independent agency under §3.9. No citizenship may be revoked as punishment once granted; the Republic may not manufacture statelessness as a punitive tool.

#### **§5.1.b Derivative and Founding Status**

A child born before a parent acquired legal residency or citizenship, who accompanies that parent to the Republic within a Legislature-defined window, receives derivative status. All individuals holding voting rights on Day Zero of ratification are automatically granted full citizenship as founding members of the Republic without testing or application.

#### **§5.2 Legal Resident Rights**

Legal residents hold a Residency Credential allowing them to work, enter contracts, own property, and access social state systems under Article XII. They hold all Article I rights as Inhabitants. They do not hold federal voting rights or the right to stand for federal office. No child of a citizen or legal resident may be deported regardless of the child's own documentation status.

#### **§5.3 Custodial Care of Citizen Children**

Where a parent or guardian who is the primary caregiver of a citizen child is removed from the Republic, the Republic accepts responsibility for that citizen child — housing, care, and connection to remaining family. The Republic may not separate citizen children from their sole caregivers without providing for them. Where a removal order would deprive an Inhabitant child of their primary caregiver, that order is stayed pending resolution of custodial arrangements.

## **Article VI — Immigration and Residency**

#### **§6.1 The Dual-Gate System**

Every immigration application must clear two sequential stages: State sponsorship and federal certification. Legal residency requires passing both stages. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Once an applicant clears both stages, the Legat Consul must ministerially issue residency credentials; Interference with credential issuance by the Legat Consul is constitutionally prohibited. The Legislature may establish a Federal Sponsorship Category where federal agencies serve as the State sponsorship stage for applicants serving a defined federal interest; this does not bypass federal certification. The Legislature may set aggregate limits on total applications received and processed in any period, provided limits are applied without §1.6 discrimination. Asylum proceedings under §6.3 are exempt from the State sponsorship stage — no State's refusal to sponsor can extinguish a §1.21 asylum claim.

#### **§6.2 Enforcement, Removal, and Appeals**

Only the federal government may remove individuals from the Republic. Removal occurs only for violations of laws the Legislature has defined — executive detention without statutory basis is unlawful detention subject to habeas corpus. Federal certification denials are judicially challengeable on three grounds: criterion not



established under the federal certification mandate; discriminatory grounds contrary to §1.6; or procedural violation affecting the outcome. State sponsorship denials are not reviewable on the merits of the sponsorship decision but are challengeable as constitutional violations where made on §1.6 discriminatory grounds — a court finding discrimination may order reconsideration free of discriminatory criteria but may not compel sponsorship. Court decisions on State sponsorship challenges brought on §1.6 grounds are published to the NRS; personally identifying information of applicants who are not public figures is protected consistent with §1.7. Where federal certification is denied on national security grounds, a reviewing court may examine the classified assessment in camera to determine whether it constitutes a credible, specific, and documented security concern; where the court finds the assessment insufficient, the denial is vacated and federal certification must be reconsidered on the remaining criteria.

### **§6.3 Asylum and Protection**

Asylum proceedings operate on a separate constitutional track from the dual-gate system. Any person who files an asylum claim under §1.21 is an Inhabitant from the date of filing — entitled to Article I protections and social state access. Claims must be determined before any removal order takes effect. A claim filed solely to delay a final removal order may be expedited under procedures the Legislature defines, consistent with the right to a fair hearing. Where the Asylum Court grants protection, the person receives federal residency credentials by operation of that grant; State sponsorship and federal certification are not required conditions. The manner of entry does not affect the right to claim asylum or have that claim determined. No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted. Asylum proceedings must provide: a qualified adjudicator, interpreter access, the right to present evidence and witnesses, a written decision with grounds, and a right of appeal — regardless of point of entry. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

#### **§6.3.a Asylum Court**

The Asylum Court is a federal judicial institution constitutionally independent of both executive branches. Its judges are appointed under §4.2 and hold full tenure protections. The Legislature may not establish any asylum determination body as a subdivision or instrumentality of either executive branch.

#### **§6.3.b Unresolvable and Security Cases**

The Legislature must define a minimum status, material conditions, and periodic judicial review for persons subject to final removal orders that cannot be executed — because the destination country will not accept them or execution would violate §1.21. Indefinite stateless detention is constitutionally prohibited. Where the Asylum Court grants §1.21 protection to a person who poses a documented security threat, removal remains constitutionally barred and indefinite unreviewed detention is not available. Detention is permitted subject to: mandatory judicial review by an independent federal court within 90 days of initial detention; mandatory review every 180 days thereafter; statutory minimum conditions of humane treatment; and no detention beyond 5 years without annual SC review.

#### **§6.3.c Unaccompanied Minors**

An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.21 protection. A federal legal guardian must be appointed by the federal court with jurisdiction over the point of contact within 72 hours. No

unaccompanied minor may be detained in a facility not specifically designated and resourced for children.

## Article VII — Elections

### §7.1 The Right to Vote

Every eligible citizen holds the right to vote in federal elections and the right to have that vote counted. Government at every level is prohibited from taking any action that makes voting more difficult, less accessible, or less secure. No law, rule, administrative decision, or practice that reduces access to the franchise is constitutionally valid. The Republic holds an affirmative obligation to make voting as accessible as possible consistent with security — it may not compel citizens to vote, but it must provide conditions in which doing so is genuinely possible. Federal election periods are public holidays.

### §7.2 Consular Election System

The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality qualification. A candidate wins outright by satisfying both. Where a candidate's national RCV majority reaches or exceeds 60% of active ballots, the State plurality requirement is waived. Where no candidate wins outright, a runoff is conducted between the two candidates with the highest national first-preference totals, determined by national RCV only with no State plurality requirement; where two candidates are tied for the second position, the Elections Panel determines which advances by lot. Where the runoff itself produces a tied result, the Elections Panel determines the winner by lot in a public session; the result is published to the NRS and is final. The Elections Panel administers and certifies all consular elections. Territory citizens vote in consular elections and their votes count in the national RCV total; Territories are not included in the State plurality calculation.

#### §7.2.a State Plurality Requirement

A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. The Elections Panel certifies State-by-State first-preference results as part of overall election certification. Certification is final and may be challenged only before the SC within 14 days of certification by either candidate or the Elections Panel itself where it identifies a material error in its own certification.

### §7.3 Federal Elections

Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; consular elections every six years. All federal elections use Ranked Choice Voting — majority required, not plurality; consular elections use RCV within the framework of §7.2, which adds the State plurality requirement. The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors. All federal elections, referenda, and confirmation votes are administered by the Elections Panel using the National Voting System, free from executive interference. The Legat Consul may not declare, postpone, or influence the scheduling of elections — including declaring emergencies that have the effect of delaying them. No State may take any action that reduces NVS access, functionality, or availability within its territory. States may offer early voting, mail-in ballots, and

alternative participation methods provided all methods connect to the NVS and meet its constitutional standards. Special elections for vacancies are administered by the Elections Panel under procedures established by statute. Where the Elections Panel certifies that elections cannot be held across a substantial portion of the Republic due to a natural disaster or catastrophic infrastructure failure, the Legislature may by 2/3 of both chambers in a concurrent vote postpone the affected election for a period not to exceed 90 days, publishing the determination to the NRS; the mandates of sitting members extend automatically for that period only. Only the Elections Panel may certify that conditions have normalized sufficiently for elections to proceed; the postponement lapses and elections must be held immediately upon that certification. No further postponement may be granted without a new Elections Panel certification of impossibility and a new 2/3 legislative determination.

## **Article VIII — Electoral Finance and Campaign Conduct**

### **§8.1 Electoral Finance**

Electoral finance is regulated to prevent structural distortion of democratic accountability through concentrated financial influence. All contributions above the de minimis threshold must be publicly disclosed to the Elections Panel and published to the NRS — anonymity in electoral finance is prohibited. Individual contributions to electoral campaigns are capped at a level defined by statute. Corporate, organizational, and foreign contributions are prohibited; the prohibition on foreign contributions applies to any person or entity that is not a Republic citizen or resident. Independent expenditures made in support of a campaign are subject to the same disclosure requirements as direct contributions; coordinated expenditures are treated as direct contributions. Financial contributions to electoral campaigns are not constitutionally protected speech under §1.5 and are not protected as associational activity — the regulation of electoral finance is explicitly reserved from both speech and associational protection.

### **§8.2 Campaign Conduct**

Candidates for constitutional office campaign in compliance with published Elections Panel conduct standards, which include: prohibition on demonstrably false statements of material fact about a candidate's recorded votes; prohibition on impersonating other candidates; prohibition on vote suppression activities; and prohibition on interference with the electoral administration process. Characterization, emphasis, and contextual framing of voting records are protected expression. Campaign communications must clearly identify their sponsor. Fabricated or deceptively edited communications about other candidates are a constitutional violation; the Elections Panel publishes findings of violation to the NRS and candidates found in violation are subject to sanctions defined by statute. Any attempt by a foreign government, foreign national, or foreign-controlled entity to influence a Republic election is a constitutional violation; candidates who knowingly accept foreign assistance are disqualified from that election cycle. Constitutional officeholders standing for election in a different race must observe strict separation between official functions and campaign activity; official resources may not be used for campaign purposes.

### **§8.3 Public Campaign Financing**

The Republic maintains a publicly funded campaign financing system as an alternative to private fundraising. The system provides all registered candidates with equal baseline funding; no allocation may advantage incumbents or established political organizations. Candidates who accept public financing are subject to spending limits defined by statute. The Legislature may create a matching funds component amplifying small donations; matching thresholds, caps, and ratios must apply equally to all participating candidates. The Elections Panel administers disbursement and audits all campaign finance records within the period defined by statute following any election, not to exceed 90 days. Candidates who receive impermissible contributions must promptly report them and either return them to the contributor or remit them to the public campaign financing fund; the Legislature defines reporting timelines and procedures by statute.

## **Article IX — The Monitors**

### **§9.1 Three Monitors**

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected by bodies other than those it oversees. The Monitors hold an information-only mandate: they publish findings but do not issue binding orders. Each Monitor General serves a 10-year non-renewable term with a constitutionally protected funding floor. Failure of a Monitor to act does not extinguish constitutional authority or suspend any constitutional obligation, unless this Constitution explicitly provides otherwise. The Monitors are the Republic's independent auditors. Their mandate is to observe constitutional processes, verify factual and legal compliance, and publish expert findings to the NRS. Monitor findings carry the authority of expert analysis — available to any party, given due weight, and not binding on any constitutional actor. No Monitor finding or assessment is a prerequisite for any legal proceeding, constitutional mechanism, or governmental function. Any constitutional officer, chamber, or body may request a focused assessment from any Monitor within that Monitor's audit mandate, specifying a date by which the assessment is required. The Monitor publishes the assessment by the requested date where practicable; where this is not practicable, the Monitor publishes the reason and an estimated completion date within five days of receiving the request. Persistent non-responsiveness to reasonable requests is reportable by the other two Monitors. A requesting party may proceed with any constitutional process whether or not a requested assessment has been published.

#### **§9.1.a The Legislative Monitor**

The LM audits the Legislature for fiscal accuracy and constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing Assembly district maps against §3.3 criteria and publishing germaneness analyses; auditing the Elections Panel's administration of the referendum eligibility process; certifying legislative mandate compliance; and publishing an annual compliance report to the NRS.

#### **§9.1.b The Executive Monitor**

The EM audits both executives and the Monetary Authority. Annual responsibilities include: military compliance assessment covering whether tier authorizations were followed, whether the §2.3 intelligence warrant requirement was maintained, and whether fund certifications were observed; publishing clemency background reports before any executive act; reviewing disclosure records for constitutional

appointments; and auditing electoral finance within the period defined by statute following any election.

#### **§9.1.c The Judicial Monitor**

The JM audits the courts for judicial scope and independence, and conducts annual audits of the Elections Panel for electoral integrity compliance, including the administration of the SC Candidate Registry and all constitutional pools. The JM reviews accommodation compact compliance, Associated Community compact compliance under Article XX, and Article XVI indigenous compact obligations. The JM's mandate is procedural neutrality: ensuring that all functions requiring independence from political bias are conducted under an impartial constitutional authority. The JM's lottery-based selection makes it the appropriate body to administer all constitutional lottery draws and candidate certification functions throughout the Republic.

#### **§9.1.d Monitor General Term Expiry and Incapacity**

A Monitor General's constitutional authority terminates automatically at the moment their term expires — no further act or proceeding is required. Any official act taken after term expiry is constitutionally void. Where an unexpected vacancy arises mid-term — through death, resignation, removal, or certified incapacity — the most senior eligible member of the affected Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General until a successor is confirmed under §9.3. The Acting Monitor General holds full constitutional authority of the office. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool. The JMC confirms the designation and both executives are notified immediately; notice does not condition the designation's effectiveness. Pool membership satisfies the eligibility requirement of §3.13. Where a Monitor General is certified incapacitated by the other two Monitors jointly, the incapacitated Monitor General's authority is suspended from the moment of joint certification and the acting mechanism under this provision activates immediately.

### **§9.2 Selection and Independence**

Each Monitor is constituted through a process that structurally excludes the body being watched from selecting its watchers. The SC nominates the LM Monitor General, confirmed by national popular vote — the Legislature and both executives are entirely excluded. The Assembly Speaker and Senate Speaker jointly nominate the EM Monitor General, confirmed by national popular vote with JM vetting of the nominee's disclosure record published before the vote — the executives are excluded and neither Speaker can act alone. The JM Monitor General is selected by public lottery from a pool of former judges certified by the LM and EM — the JM has no role in constituting or certifying its own candidate pool.

### **§9.3 Monitor General Selection**

The LM Monitor General is nominated by the SC from a pool of qualified candidates maintained by the Elections Panel and certified jointly by the EM and JM, sufficiently in advance under the timeline defined by statute to ensure confirmation is complete before the transition under §3.13; confirmed by national popular vote at the next federal electoral period following nomination, by simple majority of votes cast. The confirmed successor assumes full Monitor General authority at the precise moment the incumbent's term concludes under §3.13. If the confirmation vote fails, the §9.1.d acting mechanism activates and the SC initiates a new nomination from the pool



within 60 days. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from a pool of qualified candidates maintained by the Elections Panel and certified jointly by the LM and JM, sufficiently in advance under the timeline defined by statute under §3.13; confirmed by national popular vote at the next federal electoral period following nomination, by simple majority of votes cast, with JM vetting of the nominee's disclosure record published before the vote. The same timing and failed-vote provisions apply. Where the Assembly Speaker and Senate Speaker fail to jointly nominate within 60 days of a vacancy being published to the NRS, the Senate selects a nominee from the certified pool directly by 2/3 vote of full seated membership; the selected nominee proceeds to national popular vote confirmation on the same terms; the executives remain excluded from nomination under both paths. The JM Monitor General is selected by public lottery under §9.12 from the JM Candidate Pool under §9.4.a maintained by the Elections Panel, conducted at the statutory timeline under §3.13, sufficiently in advance to ensure seamless succession. The lottery-selected candidate is confirmed by national popular vote at the next federal electoral period following the draw, by simple majority of votes cast; the confirmed candidate assumes office at the precise moment the incumbent's term concludes under §3.13. If the confirmation vote fails, the §9.1.d acting mechanism activates and the JMC conducts a new lottery from the pool within 60 days; the same confirmation process applies to the new selection. All Monitor Generals serve 10-year non-renewable terms. No two Monitor General terms may begin within 18 months of each other, ensuring continuous institutional knowledge across offices. The Elections Panel administers all Monitor General confirmation votes as part of the regular federal electoral period ballot.

#### **§9.4 Judicial Monitor Audit Mandate**

The JM holds two constitutional mandates: as auditor, it monitors the court system, audits the Elections Panel's administration of the SC Candidate Registry, and conducts compliance audits across compact obligations; as certification administrator, it certifies lottery draws and panel selections throughout the constitution. Both mandates are information-only. Annual audit responsibilities include: court operations for scope compliance and independence; the Elections Panel for electoral integrity; SC independence; inferior court compliance with jurisdictional limits; and compliance under Article XIV, Article XIX, and Article XX compacts. Any candidate removed from a ballot by JM certification may appeal to the Appellate Court within 14 days; the Court reviews only whether eligibility criteria were correctly applied and must rule within 21 days.

##### **§9.4.a Judicial Monitor General Candidate Pool**

The Elections Panel maintains the JM Candidate Pool. Eligibility is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years. The JM holds no role in constituting or certifying its own candidate pool. The Elections Panel applies the eligibility criteria and enters qualifying applicants into the pool. The LM's ongoing audit encompasses verification of judicial service records; the EM's ongoing audit encompasses financial disclosure review; both publish findings to the NRS. The Joint Monitor Council conducts the lottery from the pool in a public session; the outgoing JM Monitor General does not participate. The pool is publicly accessible at all times.

**§9.4.b Supreme Court Candidate Registry**

The Elections Panel maintains the standing SC Candidate Registry. Any citizen meeting the eligibility criteria — at least 15 years of legal practice or 10 years of judicial service, no current government position, no disqualifying financial interest — may apply directly to the Elections Panel. The Elections Panel applies the stated eligibility criteria and enters qualifying applicants into the registry. The JM's ongoing audit of the Elections Panel encompasses the administration of the SC Candidate Registry; audit findings on the registry and its members are published to the NRS as part of that audit. The EM's ongoing audit of constitutional appointments encompasses financial disclosure review; findings are published to the NRS. Any applicant excluded from or removed from the registry may appeal to the SC within 14 days on the sole ground that the eligibility criteria were misapplied. The Registry is publicly accessible on the NRS at all times.

**§9.5 Monitor General Removal**

For-cause removal of any Monitor General follows §9.14 Standard Track. The Judicial Track under §9.14 is additionally available where two of the three Monitors jointly assess and report for-cause grounds.

**§9.6 Monitor Operations**

Every finding, report, and discrepancy notice must be published to the NRS permanently and free of charge; no official may suppress, delay, classify, or alter a Monitor report before publication. Monitor reports are permanently exempt from classification. Where any Monitor publishes a Critical Failure finding, the Legislature must publish a remediation plan with actions and timelines within the period defined by statute; failure to publish a remediation plan is a constitutional compliance breach. Any staff member may publish a minority report directly to the NRS if they believe a finding has been improperly omitted or suppressed — staff cannot be disciplined for doing so. All three Monitors jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Monitor mandates, the Monitors may conduct a joint investigation; neither Monitor General may veto the other's contribution. All three Monitors have unrestricted access to records, personnel, facilities, and systems within their audit mandate; obstruction is a constitutional breach.

**§9.7 Triggered Investigations**

The EM may investigate a constitutional officer for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer's control. Political disagreement with a constitutional requirement is not a defense.

**§9.8 EM Annual Military Assessment**

A dedicated section within the EM's annual report covers: whether military operations in the prior year were authorized through the correct tier; whether the §2.3 intelligence warrant requirement was maintained throughout all operations; whether Civic Consul fund certifications were obtained and observed; and whether all military orders were published to the NRS within the required period.

**§9.9 Removal Grounds Review**

To initiate a standard track removal vote under §9.14, the charging party — a concurrent resolution of 1/3 of either chamber, or two of the three Monitors jointly — must file stated grounds with the SC. The SC determines within 14 days whether the

stated grounds constitute at least one statutory removal category for the subject office as defined by the Legislature. If grounds are confirmed, duty suspension activates immediately and the Legislature may proceed to a removal vote. If grounds are not confirmed: the process closes and may not be reinitiated on the same or substantially similar grounds within six months. The SC reviews constitutional category only — it does not assess the factual merits or credibility of the underlying allegations. No per-proceeding panel is required; the SC performs this function directly. The Legislature defines the enumerated removal categories for each constitutionally confirmed office by statute; no removal vote may proceed without the SC's categorical confirmation under this section. Where the SC fails to publish its determination within 14 days, the stated grounds are deemed confirmed by constitutional operation and duty suspension activates immediately; the Legislature may proceed to a removal vote as if grounds had been confirmed.

#### **§9.10 Monitor Minimum Funding Guarantee**

The annual appropriation for each Monitor, the Elections Panel, and the NRS Panel may not fall below the inflation-adjusted equivalent of the prior fiscal year's funding level without a 2/3 vote of both chambers in a concurrent vote. The Monetary Authority certifies each body's prior-year funding level adjusted for inflation and publishes the certified floor to the NRS before the Legislature begins its annual budget process. Where a budget reduces any protected body below its certified inflation-adjusted floor without the required supermajority, the prior-year funding level takes effect automatically for that body by constitutional operation.

#### **§9.11 Joint Monitor Council**

The three Monitor Generals jointly constitute the JMC as the standing coordination body for matters crossing Monitor jurisdictions. The JMC formally houses all jointly certified constitutional functions — including lottery draws and selection processes throughout the constitution. The chair of any joint session is the Monitor General whose domain covers the primary subject matter; where all domains are equally engaged, the chair rotates annually. Two of the three Monitor Generals constitute a quorum for all JMC functions; no mandatory joint function may be permanently blocked by a single Monitor General's non-participation. Where a Monitor General does not participate in a joint function, their position — if stated — is published to the NRS alongside the joint determination. Where the Monitor Generals cannot reach consensus on a joint matter, each publishes their individual assessment and the disagreement is noted in the permanent NRS record. Sustained non-participation by a single Monitor General is subject to the §9.11.a Institutional Compromise Protocol. The JMC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted. The joint annual NRS audit is published to both chambers. The JMC has no authority to override the individual mandate of any Monitor.

##### **§9.11.a Institutional Compromise Protocol**

Where two of the three Monitors jointly assess and report that the third is operating in demonstrable bad faith, they petition the SC directly for confirmation of the finding; the SC rules within 14 days. Upon filing the petition, the two petitioning Monitors jointly designate an Acting Monitor General as the longest-tenured member of the affected Monitor's candidate pool who accepts the designation; both executives are notified immediately. The Acting Monitor General assumes all constitutional

functions of the compromised Monitor from the moment of designation. If the SC does not confirm the finding, the Acting Monitor General stands down and all functions return immediately to the original Monitor General. If confirmed, the Acting Monitor General serves until either the original Monitor General is restored to full function or a new permanent Monitor General is confirmed under §9.3 — whichever occurs first. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool.

#### **§9.12 Constitutional Pool Framework**

The Elections Panel maintains all constitutional candidate registries and pools as the administrative keeper of record. The Elections Panel receives applications, stores records, provides public access via the NRS, and enters qualifying applicants into the relevant registry or pool by applying the published qualification requirements. The relevant Monitor's ongoing audit encompasses the Elections Panel's administration of each pool and registry; audit findings are published to the NRS. Any applicant excluded may appeal to the SC within 14 days on the sole ground that the qualification requirements were misapplied. Pool records and certifications are public NRS records at all times. The Joint Monitor Council conducts the draw in a public session, certifies the result jointly, and publishes it to the NRS. Where selection is by deliberate nomination, the named officer nominates from certified pool members. Where confirmation is required, the Senate must act within the period defined by the establishing provision; failure to confirm within that period is a constitutional compliance breach. The JM monitors all constitutional pools annually and publishes a status report. The constitutional minimum for all pools is five eligible members; where a pool falls below five, the JM publishes a compliance breach and the relevant nominating bodies must act to restore the minimum within the period defined by statute. Where a pool reaches zero before an acting designation is made, the most senior eligible federal judge by continuous service who is not currently serving in any constitutional office serves as Acting officer until the pool is restored and a designation is made under the ordinary acting mechanism; this fallback applies only to judicial and Monitor pools.

#### **§9.13 Registry Integrity Standards**

These standards apply to all registries and candidate pools maintained under constitutional mandate. Eligibility criteria are strictly objective — years of practice or service, office status, and financial interests as defined by this Constitution or by statute. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void. Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days. An excluded or removed applicant may petition the SC within 30 days of NRS publication; the SC reviews only whether the stated grounds correspond to an established eligibility criterion — it does not review the factual merits of the determination. The JMC annual audit must evaluate each registry for pool depth, distribution, and patterns in exclusion decisions.

#### **§9.14 Constitutional Officer Removal Framework**

This section governs for-cause removal of all constitutionally confirmed independent officers except Supreme Court justices (§4.3.b) and elected executives. Two removal tracks are available. Under the Standard Track, the charging party files stated



grounds with the SC under §9.9; the SC confirms grounds within 14 days; duty suspension activates immediately on confirmation; removal requires a 2/3 vote of both chambers in a concurrent vote; no removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. Under the Judicial Track, where two of the three Monitors jointly assess and report for-cause grounds and petition the SC, the SC determines within 30 days whether the certified grounds constitute sufficient cause for suspension; where the SC fails to rule within 30 days, cause is deemed found by constitutional operation; if cause is found or deemed found, the officer is suspended and the most senior deputy acts in the interim; the Senate has 60 days to hold a removal vote, with 3/5 required for permanent removal; a vote failing 3/5 reinstates the officer and closes the process; where the Senate fails to vote within 60 days, the matter is placed before the next federal electoral period ballot or a Legislature-set special election with a minimum 90-day notice period; removal by election requires 60% of votes cast. The Judicial Track is available where the Standard Track's legislative threshold appears unreachable due to demonstrated political gridlock. Officers subject to this framework include the Monitor Generals and any other officers whose selection process is established by this Constitution rather than by statute. Officers of independent agencies established under §3.9 are not subject to this framework; their removal is governed by the statute establishing the relevant agency, which must preserve the for-cause removal principle. Provisions governing specific offices may cross-reference this section without restating its terms.

## Article X — The National Record System

### §10.1 National Record System

The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost. Every constitutional act, order, finding, certification, designation, declaration, and determination made under authority of this Constitution is published to the NRS as a permanent record. No provision of this Constitution need state this obligation individually; it applies universally by operation of this section. Where this Constitution specifies a publication timeline, that timeline governs; in all other cases, publication occurs at or before the effective moment of the act. Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original. The NRS must remain fully functional in the event of localized technical failure — no single point of failure is constitutionally acceptable. The Legislature defines technical standards by statute. The NRS includes a permanent historical archive of all prior legislative acts, executive orders, judicial decisions, and government documents dating to the Republic's founding. Records published to the NRS by any jurisdiction within the Republic are recognized as authentic by all other jurisdictions without re-certification. Monitor reports are permanently exempt from classification. Citizens may submit corrections or context to any NRS record through a public mechanism maintained by the LM; submissions are published alongside the original after accuracy review. The NRS is the record of government, not a condition of it. Government acts take legal effect from the moment of issuance regardless of NRS status; the publication obligation applies from the moment the NRS is restored. The JM maintains a continuously operating parallel authentication system, physically and logistically independent of the NRS, capable of authenticating and preserving all constitutional acts without NRS connectivity. This system operates in parallel at all times — not merely as a contingency — and records all authenticated acts with full constitutional effect from the moment of their issuance. Upon NRS restoration, all



parallel system records migrate to the NRS as permanent records with their original issuance timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record of the Republic; the Legislature must by statute establish permanent restoration obligations and timelines within 90 days of that threshold. The Legislature defines the technical specifications, security standards, and operational parameters of the parallel system by statute; the constitutional obligation to maintain it is absolute and its funding floor follows the NRS funding floor in this section. Funding for the NRS may not be reduced below the prior year's level without a 2/3 vote of both chambers. Classification used to conceal a constitutional violation or illegal order is itself a constitutional offense.

### **§10.2 NRS and Electoral Integrity**

All electoral records — voter registration, ballot counts, audit trails, certification documents — must be published to the NRS within the timeframes specified by the Elections Panel's constitutional mandate under Article XI. No classification exception applies to electoral records.

### **§10.3 Classification Criteria**

Government records may be classified only on grounds the Legislature defines by statute. Classification to conceal a constitutional violation, policy disagreement, or political embarrassment is prohibited and void. The classifying authority must state the statutory ground at the time of classification.

#### **§10.3.a Duration Framework**

No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension may be granted where the responsible executive publishes a justification to the EM; the EM assesses whether the justification meets the statutory standard and publishes its finding to the NRS. No material may remain classified beyond 30 years under any circumstances. On expiry, the NRS Panel publishes the declassified record within 30 days of the classification ceiling date; this obligation is automatic and requires no further government act. All other classification periods, procedures, and review mechanisms are defined by statute within this ceiling.

## **Article XI — NRS Panel and Elections Panel**

### **§11.1 NRS Panel and Elections Panel**

Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic's permanent record infrastructure and electoral systems respectively. The NRS Panel operates the National Record System. The Elections Panel operates the National Voting System and administers all federal elections, referenda, and confirmation votes. Each panel is operationally independent of the other and of both executives and the Legislature in the exercise of its functions; neither panel may direct the other. The Legislature defines qualification standards, panel composition, term lengths, and operational parameters for each panel by statute; panel members are appointed through the independent agency process under §3.9. Each panel must have no fewer than five members at all times; the Legislature may not reduce either panel below this floor. No single appointing authority may hold a majority of appointments to either panel within any single electoral term. The Chair of each panel is its most senior member by continuous service; where two or more members have equal continuous service, the Chair is

determined by lot conducted by the JMC. Each panel exercises only those ministerial functions expressly granted by this Constitution and by statute; neither panel holds legislative, executive, judicial, or policy authority.

### **§11.2 NVS Properties and Voting Rights**

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter without revealing identity to any other party), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). No information generated by the NVS — including voter participation records — may be shared with any government body or foreign entity for any purpose other than administering the relevant election. Every citizen holds the right to vote in federal elections. The Elections Panel issues and manages the Citizen Voting Credential, storing only cryptographic identifiers — not names or biometric data. Voter eligibility is verified through cryptographic matching against citizenship and residency records maintained separately from the NVS and accessible only for that purpose. States may offer early voting, mail-in ballots, and alternative participation methods provided all methods connect to the NVS and meet its constitutional standards. No State may reduce NVS access, functionality, or availability within its territory. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. Before each federal election window, the Elections Panel delivers to every eligible citizen the list of federal races on their ballot, NVS access procedures, and the certification timeline through at least two distinct channels.

### **§11.3 Panel Emergency Authority**

The Legislature must establish by statute a procedure for each panel to adopt temporary technical measures in response to imminent security threats or system failures within its domain; emergency measures may not change electoral rules, timelines, or NRS record permanence; they expire within 72 hours unless the seated members of the panel ratify them by majority vote of those able to act. The Legislature must by statute establish the transition from any predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

## **Article XII — Social State and Economic Rights**

### **§12.1 The Social State and Monetary Authority**

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework for each by statute. The Legislature must establish the Monetary Authority as an independent agency under §3.9, responsible for monetary policy and fiscal integrity certification. The Legislature may not define MA independence standards in a manner that compromises the credibility of its certification functions; the EM audits MA operations and independence annually and publishes findings to the NRS.

### **§12.2 Fiscal Accountability**

The Legislature must pass a balanced budget or publish a structural deficit justification reviewed by the MA for fiscal accuracy. Structural deficits above the threshold defined by the MA require a published plan for return to balance. Where the Legislature fails to enact a budget by the constitutional deadline defined by statute, an interim automatic appropriation takes effect by constitutional operation covering: the functions protected under §2.15; civil service compensation; and debt service obligations. The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under the interim appropriation. Where discretionary government spending is suspended due to budget failure, the pay of all members of both chambers is withheld from the same date on which government employee pay is withheld and released only upon budget enactment. The Legislature must fund the National Endowment by appropriation in years of fiscal surplus; failure to establish or adequately fund the Endowment is a compliance breach reported by the LM.

### **§12.3 Public Campaign Financing**

The public campaign financing system established under §8.3 is a constitutional mandate.

### **§12.4 Ethics and Conflict of Interest**

All constitutional officers must disclose all financial interests, holdings, income sources, and liabilities to the EM within the period defined by statute after taking office and annually thereafter; disclosure records are published to the NRS. Any officer with a direct financial interest in a decision within their authority must recuse themselves; recusal is self-executing. Any decision made without required recusal is voidable; the EM reports the conflict to the NRS and the relevant chamber may void the decision by simple majority within 90 days of that certification. Constitutional officers may not, for a period defined by statute after leaving office — which may not be less than two years — engage in any activity that monetizes or draws on non-public information, relationships, or access accumulated during service; the EM audits post-service activities of constitutional officers for compliance with this restriction and publishes findings to the NRS; enforcement is through the appropriate legal authority. Officers may not accept gifts above a de minimis threshold; all gifts above the threshold must be disclosed to the EM and deposited with the relevant treasury. All records created in the exercise of official functions are public records and may not be retained, destroyed, or removed by departing officers. The EM investigates alleged violations and publishes findings to the NRS; where findings warrant further action, the EM refers to the appropriate authority.

### **§12.5 National Endowment**

The National Endowment is a constitutionally established reserve fund that backstops the Republic's social state obligations under §12.1 during periods of Severe Revenue Contraction, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority as part of its constitutional mandate; the Monetary Authority's sole obligation with respect to the Endowment is to preserve and grow it for social state backstop purposes. Disbursements are activated on Monetary Authority certification of Severe Revenue Contraction and continue until the Monetary Authority certifies the contraction has ended. The EM audits the Monetary Authority's management of the Endowment annually and publishes findings to the NRS.

### **§12.6 Compensation of Public Officials**

No government official may set their own compensation or the compensation of their direct supervisors. All official compensation is set by statute and is a public record on the NRS. Official benefits and accommodations beyond compensation reflect the functional requirements of the office, not the status of the officeholder. No benefit may exceed what the function genuinely requires. Departures from ordinary professional standards require a demonstrable operational need certified by the EM and are limited to the minimum extent that need requires.

## Article XIII — Direct Democracy

### §13.1 Optional Referendum

Citizens may initiate a national referendum to repeal enacted legislation by petition of 5% of eligible voters within 90 days of enactment. Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible. The Elections Panel applies these ineligibility categories when administering petitions; the LM's ongoing audit of legislative compliance encompasses published findings on the character of enacted laws, which the Elections Panel and any party may reference. Any eligibility determination is challengeable in the Appellate Court within 14 days. If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to the Legislature-defined turnout threshold, repeals the law immediately upon certification. A failed referendum cannot be re-initiated on the same or substantially similar grounds for 5 years; the Legislature may re-enact a repealed law, which is again subject to referendum.

### §13.2 Citizen Legislative Initiative

Citizens may propose legislation directly to the Legislature by petition of 10% of eligible voters. The Legislature must vote on the proposal within 90 days; if it fails or is not voted on, the proposal proceeds to a direct citizen referendum; passage requires the same threshold as a citizen-initiated constitutional amendment under §17.1, reflecting the democratic mandate required to bypass the Legislature entirely.

### §13.3 Local Government

Local governments — cities, counties, municipalities, and other subdivisions — receive constitutional recognition as primary points of contact between citizens and government. They are entitled to reasonable fiscal capacity to carry out their constitutional functions. States may not systematically defund local governments to achieve de facto centralization of State-level functions.

### §13.4 Electoral Supermajority Threshold

60% of votes cast is the constitutional threshold for all direct electoral supermajority determinations. This threshold applies wherever this Constitution requires a supermajority outcome in a citizen vote rather than a legislative vote: the consular first-round threshold at which the State plurality requirement is waived (§7.2); public confirmation of a Supreme Court justice under the Senate bypass mechanism (§4.4.a); and public election removal of a constitutional officer under the Judicial Track (§9.14). The Legislature may not set a higher or lower threshold for any direct electoral supermajority determination without a constitutional amendment. This provision does not govern the optional referendum or citizen initiative under §13.1–§13.2, which require only a simple majority of votes cast; it governs determinations that require constitutional supermajority democratic consent.

## Article XIV — Military Authorization and Accountability

### §14.1 Authorized Purposes for Military Force

Military force serves two authorized purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to genocide as recognized under international law. Three purposes are explicitly prohibited regardless of legislative authorization: the installation, support, or maintenance of a specific governmental structure in another sovereign state; resource extraction; and ideological imposition. Legislative authorization must state which authorized purpose it serves; authorization that cannot be linked to an authorized purpose is constitutionally void.

### §14.2 Defense Authorization and Allocation

Military expenditure is authorized through Civic Consul certification concurrent with legislative authorization. No military operation may be funded without Civic Consul certification; the Civic Consul may certify, condition, or decline certification on any operation. Expenditure in categories not covered by the certification requires supplementary Civic Consul certification. When legislative authorization expires or is not renewed, all military expenditure ceases; ongoing contracts may continue to wind down for the period the Legislature defines by statute; no new commitments may be entered after authorization expires. The EM audits all military expenditure during active operations and publishes findings to the NRS. Within the period the Legislature defines by statute following the conclusion of any military operation, not to exceed 180 days, the EM publishes a comprehensive expenditure accountability report. Where the Civic Consul declines certification for ongoing military operations that have been legislatively authorized, previously certified operational expenditure continues at maintenance-only levels for the period the Legislature defines by statute — covering only operations explicitly within the prior authorization, with no escalations, expansions, or new commitments permitted; the Legat Consul must publish notice of the certification refusal to the NRS within 24 hours with stated grounds; both chambers must be notified simultaneously; if the Legislature does not act within the maintenance period, all expenditure ceases. A Civic Consul who declines certification bears the same constitutional attribution for the consequences of that decision as a Legat Consul who orders an operation.

### §14.3 Military Intelligence Operations

Intelligence capabilities used in support of authorized military operations are subject to the §2.3 warrant requirement at all times — no military operation authorizes domestic intelligence collection against citizens without independent judicial authorization. Intelligence activities must be published to the NRS in classified summary form within the period defined by statute following military operations being fully concluded.

### §14.4 Military Accountability

Within the period defined by statute following legislative military authorization being renewed for a second time, the Senate must approve a Transition and Reconstruction Plan specifying the Republic's post-conflict obligations: status of alliance obligations, civilian reconstruction support, transitional justice support, and withdrawal timeline. The Plan is published to the NRS and is binding on both executives within their



respective domains. If the Senate fails to approve a Plan within the required period, the LM reports a constitutional compliance breach; the Civic Consul may provisionally extend expenditure certification for continued operations for up to 60 days total in two 30-day extensions, each requiring Civic Consul notification to the Senate and publication to the NRS confirming that the certified expenditure remains within the Declaration's scope; operational authority over those operations remains with the Legat Consul throughout. Once the two extensions are exhausted, no further authorization renewals are permitted until the Senate approves a Plan.

#### **§14.5 Treaty-Based Military Authorization**

Where an existing treaty requires military action, the Legat Consul may act immediately and must notify both chambers and the Civic Consul within 12 hours, citing the specific treaty obligation triggered. Senate ratification of a treaty by the required supermajority constitutes legislative authorization for all military actions required by that treaty when its obligations are triggered; no separate legislative authorization is required for operations the treaty obligates. The Legislature's authority over treaty-based operations runs through appropriations and through the treaty withdrawal mechanism under §3.6. Civic Consul certification of expenditure applies from the moment of action under §14.2.

## **Article XV — Territorial Structure and Statehood**

#### **§15.1 Territorial Compact**

A Territory operates under a Territorial Compact, has federal protections under Article I, accesses social state systems under §12.1, and may begin the Statehood pathway under §15.2. Territories hold Assembly seats proportional to their population and participate as full voting members. Territories do not hold Senate seats; Senate representation is reserved for States.

#### **§15.2 The Statehood Audit**

The pathway from Territory to State is automatic upon passing the Statehood Audit and Provisional Membership Period — no political vote is required once the audit is passed. The audit has two components: the LM audits fiscal integrity; the JM audits legal compliance with every Article I right. Both must pass. A Territory that fails receives specific published findings and may resubmit after addressing the failures. The Legislature defines audit methodology and resubmission timelines by statute. Upon passing, the Territory enters a Provisional Membership Period of between one and three years as the Legislature defines; clean completion results in automatic Statehood. Every State must maintain three ongoing conditions: functioning electoral processes, basic rule of law and judicial function, and Article I rights compliance; annual audit verifies continued compliance and a failing State enters a remediation process, not automatic devolution. Where active conflict prevents completion of an annual audit in a significant portion of a State's territory, the LM may grant provisional audit status for that cycle on joint Monitor assessment; provisional status is unavailable where the State materially contributed to the conflict conditions. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria.

#### **§15.3 Mandatory Devolution**

A State enters Mandatory Devolution upon three consecutive annual Statehood Audit findings of failure published by the LM. After each failing audit, the LM publishes an

Early Warning specifying compliance requirements; the State must publish a Remediation Plan within the period defined by statute. After three consecutive failures, citizens vote on one of three paths: a two-year federal remediation commission; a State-managed remediation plan subject to LM quarterly assessment of progress against the published compliance requirements; or devolution to Territory status. A State-managed plan that fails two consecutive quarterly assessments automatically triggers a new citizen vote between the remaining two options. A devolved State returns to Territory status. Sitting senators complete their current elected terms — Senate seats are not vacated — but no new Senate elections may be held until Statehood is restored; existing Assembly members complete their current terms; Article I rights and social state protections continue without interruption. Restoration to Statehood is automatic upon passing the Statehood Audit and completing the Provisional Membership Period. Within 30 days of devolution taking effect, the affected State may petition the SC on the sole ground that the audit findings are factually insufficient to establish three consecutive failures; the Court reviews only the factual basis and must rule within 14 days.

#### **§15.4 Voluntary Devolution and Merger**

A State may voluntarily restructure its relationship with the Republic. The process requires a State referendum achieving 60% approval of eligible voters on the specific proposed restructuring; and Senate approval of a negotiated restructuring agreement by 2/3 majority. The agreement specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, and continuing obligations; it is published to the NRS and legally binding. Social state protections and Article I rights continue through the transition. A Territory resulting from voluntary devolution enters the Statehood re-qualification pathway immediately. A Territory or defined portion of a Territory may merge with a geographically contiguous existing State, requiring a 60% referendum with at least 50% participation, approval by the existing State through its own constitutional process, a joint LM-JM Statehood Audit confirming the existing State's integrity is maintained, and Senate ratification by simple majority.

#### **§15.5 Re-Qualification Pathway**

A Territory resulting from mandatory or voluntary devolution enters the Statehood re-qualification pathway under §15.2 immediately upon the effective date of devolution. No additional political vote is required to begin the pathway.

#### **§15.6 Voluntary Incorporation**

A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The process requires a petition resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving simple majority on at least 50% participation; the JM's published assessment of whether the entity systematically violates any non-derogable right listed in §1.19.b; and acceptance by the Legislature by 2/3 of both chambers. An accepted petition produces an incorporation agreement specifying a transition period not exceeding 48 months. No constitutional officer may condition treaty obligations, trade relations, military cooperation, or foreign aid on any entity's decision to initiate or advance this process. An indigenous nation recognized under Article XVI must make a status election under §16.7 before this provision applies.

#### **§15.7 State Immutability and Territorial Integrity**

A State's constitutional boundaries are fixed. No constitutional mechanism permits a State to divide directly into two or more States — the separating portion must first become a Territory before seeking independent Statehood. The Republic's territorial extent may only be reduced by the consent of the affected population through a parliamentary amendment with Popular Ratification, or through a citizen initiative amendment — parliamentary amendment with State Ratification alone is insufficient. A State may not secede by ordinary statute or State referendum alone. No executive action may alter the Republic's territorial extent.

## Article XVI — Indigenous Sovereignty

### **§16.1 Acknowledgment of Prior Sovereignty**

Indigenous Nations within the Republic's territory hold a distinct constitutional relationship with the Republic based on prior sovereignty. This relationship is acknowledged, not granted — the Republic's constitutional framework does not create indigenous sovereignty; it recognizes sovereignty that precedes it. The compact relationship is bilateral: the Republic acknowledges Indigenous prior sovereignty; Indigenous Nations acknowledge the Republic's constitutional framework within the scope of their compact.

### **§16.2 Compact Formation**

An Indigenous Nation may enter a compact with the Republic by submitting a compact proposal to the Senate. The Senate must within 90 days either begin compact negotiations or publish written reasons for declining; a declined proposal may be resubmitted after 5 years or after a material change in circumstances. Compact terms are negotiated between the Nation and the Civic Consul, with JM oversight. Compacts take effect upon 2/3 Senate ratification and Indigenous Nation ratification by their own constitutional process.

### **§16.3 Rights and Governance in Compact Territories**

Article I rights apply in full within all compact territories; no compact provision may limit or qualify any Article I right; where compact governance conflicts with an Article I right, Article I prevails. Indigenous Nations with compacts hold governance, judicial, and resource sovereignty within their territories subject to the specific terms of their compact. Indigenous Nations may establish their own courts with jurisdiction over matters within compact scope, operating in parallel with federal courts; citizens may bring Article I claims directly to federal courts regardless of compact scope. Compact territories include explicit land and resource sovereignty provisions; the Republic may not alter compact land provisions without Nation consent; resource extraction within compact territories requires both Republic and Nation approval. The Republic recognizes Indigenous governance structures as legitimate political institutions within compact scope; federal agencies must coordinate with compact governance bodies. Compacts must include provisions for preservation and transmission of Indigenous languages and cultural practices; the Republic provides federal education funding that supports Indigenous-language instruction.

### **§16.4 Compact Administration and Continuity**

Compacts are living agreements administered through joint mechanisms. Disputes are resolved through a Joint Compact Review Council with equal representation of the Nation and the Republic. The Republic is represented on the Council by the Civic Consul's designated Compact Officer for domestic and governance matters; the Legat

Consul's designated representative participates for any matter within the Legat Consul's domain under §2.1. Council decisions are binding on both parties within the scope of the compact; neither party may unilaterally declare a compact dispute resolved. Constitutional questions are appealed to the SC, which must rule within 90 days of petition; where the SC fails to rule within 90 days, the Nation's position is upheld by constitutional operation pending any subsequent ruling. Compacts are reviewed on a schedule defined in the compact terms, minimum every 20 years; either party may request a review outside the schedule. The review may result in compact amendment by mutual agreement — neither party can impose amendments. A compact may be terminated by mutual agreement only; neither party may unilaterally terminate; only the Nation may initiate termination, and the Republic must negotiate exit terms within 2 years; if no agreement is reached the compact continues and the dispute is referred to the SC.

#### **§16.5 Federal Obligations and New Compact Petitions**

The Republic holds affirmative obligations to compact territories: federal education funding, healthcare access, infrastructure investment, and emergency response. These obligations are enforceable by the Nation through the compact dispute resolution process. Any resident of compact territory who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC, bypassing all lower courts and the compact dispute resolution process; the SC must rule within 7 days; where the SC fails to rule within 7 days, the Writ is granted and the alleged violation is treated as confirmed pending full SC review. Indigenous communities that do not currently hold a compact may petition the Senate for compact recognition; the Senate must consider the petition within 90 days and either begin negotiations or publish written reasons for declining. Indigenous Nation membership and Republic citizenship are compatible and independent statuses; dual status is the constitutional default.

#### **§16.6 Treaty Supremacy and Continuity**

All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic. Treaty rights cannot be diminished by legislation — they must be honored, renegotiated with consent, or formally superseded by mutual agreement through the compact negotiation process under §16.2 and §16.4.

#### **§16.7 Indigenous Nation Status Elections**

An indigenous nation with an established compact under Article XVI holds the constitutional right to initiate a status transition through its own democratic or traditional governance process. Three status options are available: (a) Compact Status — continued Article XVI compact relationship (default; no election required to remain); (b) Territorial Integration — election to pursue territorial incorporation through §15.6, entering as a Territory with the standard §15.2 Statehood pathway available; (c) Full Sovereign Independence — the nation exists outside the Republic's constitutional framework as a fully independent sovereign nation, with the Republic obligated to negotiate a treaty within 24 months governing borders, trade, citizenship, and infrastructure — negotiations are conducted jointly by both executives through the Council of Ministers under §2.14, with the Legat Consul holding primary authority on border and defense terms under §2.1 and the Civic Consul holding primary authority on domestic implementation terms under §2.5; as an independent sovereign the Nation may subsequently seek an Associated Community compact with the Republic under Article XX. The Republic may not

prefer, discourage, or offer inducements toward any option. The Republic must provide factual information about each status upon request.

#### **§16.7.a Status Election Process**

A status election under §16.7 requires: (1) a decision by the nation's own governance process, meeting the standards the nation itself defines for major governance decisions; and (2) publication of the election to the NRS within the period defined by statute following the governance decision. A status election is irrevocable — a Nation that elects Territorial Integration or Full Sovereign Independence may not subsequently return to Article XVI compact status. Once a Nation has transitioned to Territory or State status, any further changes follow the standard constitutional processes applicable to that status under Articles XIII and XIX — including mandatory devolution under §15.3 if three consecutive Statehood Audits are failed. A Territory or State that formerly held Article XVI compact status has no special pathway back to compact status; the irrevocability of the status election is unconditional. Once a Nation has elected Full Sovereign Independence, any subsequent relationship with the Republic — including Associated Community status under Article XX — is pursued as an independent sovereign; Associated Community status requires full independence first and cannot be elected directly from compact status. At ratification, the Republic must formally notify all recognized indigenous compact nations of their rights under §16.7.

## **Article XVII — Constitutional Amendments**

#### **§17.1 Amendment Paths**

This Constitution may be amended through the parliamentary path or through citizen initiative. No executive signature is required; no executive veto applies. Every member's vote on any amendment is published to the NRS. A parliamentary amendment requires a 2/3 supermajority of the full seated membership of both chambers. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute) or Popular Ratification (a national popular referendum achieving 2/3 affirmative support with at least 55% citizen participation within 180 days). Citizen Initiative Amendment: Any proposed constitutional amendment supported by a petition of at least 15% of eligible voters, as verified by the LM, proceeds directly to a national referendum. Passage requires 70% of votes cast with a minimum 65% citizen participation; where the participation floor is not met the initiative fails and may not be resubmitted on the same or substantially similar grounds for five years. No legislative or executive action is required to place the initiative on the ballot; the Elections Panel administers the referendum within 180 days of LM petition verification. Citizen initiative amendments are subject to §17.3 consistency analysis by the LM, advisory only.

#### **§17.2 No Executive Veto; Amendment Takes Effect**

Neither the Legat Consul nor the Civic Consul has any role in the constitutional amendment process. No signature required. No veto available. An amendment takes effect immediately upon LM certification (State Ratification) or Elections Panel certification (Popular Ratification) and NRS publication — no implementation delay, no executive discretion over timing.

#### **§17.3 Amendment Consistency and Supremacy**



An amendment that is logically inconsistent with an existing provision must either explicitly repeal the inconsistent provision or the inconsistency is treated as void. The LM publishes a consistency analysis of any proposed amendment within 30 days of passage by both chambers for a parliamentary amendment, or within 30 days of LM petition verification for a citizen initiative amendment — advisory, but a permanent public record of what the amendment changes. If a ratified amendment's consistency with existing provisions is disputed, the SC resolves the dispute on expedited review; the SC may not refuse to apply an amendment that has met its procedural thresholds, except that no constitutional amendment may extinguish a right designated non-derogable under §1.19.b; any amendment purporting to do so is void to the extent of the extinguishment, and the SC must so rule on petition of any person with standing. Amendments take prospective effect from the date of ratification — they do not retroactively alter the constitutionality of acts that were constitutional when performed. Two amendments may be simultaneously in the ratification process; if both pass, both are law; where they conflict, the one ratified later prevails; where margins and timing are equal, the LM determines precedence from NRS records. A proposed amendment may be withdrawn at any point before ratification is certified.

#### **§17.4 Supremacy of This Constitution**

This Constitution is the supreme law of the Federated Republic. All legislative acts, executive orders, treaties, administrative decisions, and government actions must be consistent with this Constitution. Any provision inconsistent with this Constitution is void to the extent of the inconsistency.

## **Article XVIII — Federal Property and National Trust**

#### **§18.1 The Use Doctrine**

Federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights — operational control over a designated footprint for the duration of the stated function. Use rights do not constitute ownership, do not transfer sovereignty from the host State, and do not survive the termination of the function that justified them. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. There are no unregistered federal land claims.

#### **§18.2 Seat of Government**

The Republic holds no territorial sovereignty at its Seat of Government. The Seat is hosted by a State or Territory selected through a competitive bid process. The Civic Consul publishes a Requirements Specification to the NRS defining minimum functional, security, physical, and operational requirements; the Legislature establishes specific standards by statute. Any State or Territory may submit a bid; the Legislature selects one by ordinary statute. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint; the host State or Territory retains full sovereignty outside that footprint. Federal control within the footprint is exclusive — the host may not tax federal operations or apply its own law to federal functions within the footprint. Residents of the federal footprint retain full Article I rights. The federal government must issue a new call for bids every twenty years; if no bids are submitted, or if bids are submitted but none meet the published Requirements Specification, the existing arrangement continues and the

Legislature may revise the Specification for the next cycle. When the Seat moves to a new host, a two-year transition window begins; prior improvements revert to the departing host with the land unless a retention agreement is reached within the statutory window.

### **§18.3 Operational Use Rights**

When a federal function ends, the Operational Use Right terminates automatically; the federal government must publish notice of termination to the NRS within the period defined by statute, not to exceed 90 days. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

### **§18.4 The National Trust**

The National Trust holds all federal land not conveyed by statute to States, indigenous compact territories, or private parties. Land disposal requires statute — the executive cannot convey or encumber public land unilaterally. National Trust designation requires a 2/3 vote of both chambers with host State consent; removal from Trust designation requires the same threshold plus SC review within 60 days confirming compliance with any applicable international obligations. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal process begins. Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility; the EM monitors compliance annually cross-referenced with §1.18. States and indigenous nations may enter co-management agreements with the Civic Consul for National Trust lands within their borders or ancestral territories without transferring Trust ownership. The National Trust Administrator is a statutory independent officer whose independence is protected by statute; the enabling statute may not reduce the stewardship obligations or diminish the EM's annual monitoring authority.

### **§18.5 Federal Property in Territories**

Federal operational use rights in Territories follow the same framework as in States under §18.3 and §18.4. Host State legislative consent is not required because Territories have no State legislature; the Territory's representative body must publish a written position to the NRS within 60 days of the proposed use right registration; the LM confirms the position was published before the use right is registered; where no position is published within 60 days, the LM certifies the omission and the registration may proceed.

## **Article XIX — Transition and Ratification**

### **§19.1 Activation Threshold and Ratification**

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §11.2; and (2) a national ratification vote achieving 60% affirmative support with at least 50% participation. Ratification creates binding constitutional obligations on all governmental actors from Day Zero. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the

constitutional principles of this Article. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status.

### **§19.2 Day Zero and Transition**

Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets transfer to the NRS; and the 24-month Transition Window begins. The Republic exists the moment the Elections Panel certifies the threshold. The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Monitor panel formed; Phase 1 — Emergency Stabilization (Days 1–90), during which existing officials serve as caretakers and social state continuity is the priority; Phase 2 — Institutional Construction (Days 91–270), during which Statehood Audits are conducted, Monitors formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271–450), encompassing the first federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

### **§19.3 Caretaker Status**

All existing government officials serve as caretakers during the Transition Window — restricted to maintaining existing services only; no new permanent legislation. Transition is supervised by a joint Monitor panel of one representative per Monitor; the panel dissolves automatically at the Transition Window's conclusion. During Phase 0, before Monitor Generals are constituted, the interim Elections Panel constitutes the panel from a pre-qualified pool established by the ratification convention; from Phase 2, each Monitor General appoints their representative to the panel for the remainder of the Transition Window. A Monitor General appointment supersedes any interim Elections Panel appointment for that Monitor's seat.

### **§19.4 Pre-Constitutional Classified Documents**

The Legislature must establish a Classification Review Commission within 90 days of Phase 4 activation. The Commission applies constitutional classification criteria to predecessor classified material: legitimately classified material enters the standard classification framework from Day Zero; improperly classified material is immediately declassified and published to the NRS. Any Inhabitant may challenge a Commission determination before the SC.

### **§19.5 Pre-Existing Obligations**

The Republic assumes the public debt obligations of its predecessor government as a constitutional matter — it does not inherit a clean slate. Active military operations of the prior government continue under existing authorization until the §2.2 tier framework can apply; the Legat Consul, once inaugurated, must certify each active operation under the appropriate tier within 14 days or begin orderly cessation; operations not certified within 60 days cease unless the Legislature grants a one-time extension. Social insurance programs — retirement pensions, disability benefits, health coverage — continue uninterrupted during the Transition Window. All benefit obligations to persons who served in military or national service under the prior

government are inherited and honored; the Legislature must pass a Veterans and National Service Benefits Act within the first budget cycle following Phase 4. The Republic is the legal continuation of the prior government as a matter of international law; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. The immediate nullification of laws conflicting with the Individual Sovereignty Floor creates constitutional disputes; the Legislature must establish an interim Constitutional Claims Court within Phase 2, with jurisdiction over all Article I claims arising from Day Zero nullification.

#### **§19.6 Transition Territories**

Territories or subdivisions meeting the Statehood Audit Competency Baseline by Phase 2 end may petition to enter as State or Territory. Those failing the Baseline enter as Territory and may begin the Statehood Audit immediately. Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Baseline. Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities. Where a State fails the Phase 2 Statehood Audit, it enters as a Territory; its population retains all Article I rights and participates in first Assembly elections proportionally. All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation without undergoing Phase 2 Statehood Audits; any capital district or special administrative region is assigned Territory status and follows the §15.2 path.

#### **§19.7 Transition Candidate Registers**

The joint Monitor panel assembles the initial Candidate Registers for all constitutionally established positions before Phase 3 elections can occur. The panel performs the register-assembly and vetting function that permanent Monitors will assume after Phase 4; registers assembled by the panel carry full constitutional validity and the Legislature ratifies and continues them through the first budget cycle after Phase 4. The panel performs interim MA fiscal certification functions from Phase 4 activation until the first MA Director takes office; the first Civic Consul must nominate MA board members within 90 days of Phase 4 activation.

#### **§19.8 Transitional Accountability Mechanism**

Where a ratifying polity's predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited, non-criminal, and consistent with Article I in all its operations. The establishing statute defines the scope, procedures, and duration; no amendment may expand the scope without the same 2/3 majority; the NRS record is permanent. No new Mechanism may be established within ten years of the sunset of a prior one.

#### **§19.9 Required Statutory Agency Establishment**

Where this Constitution assigns a specific function to a statutory independent agency under §3.9, the Legislature must establish that agency within the following timeframes from Phase 4 activation: the CLT Administrator under §5.1.a, within 180 days; the Census Bureau under §3.2, within 18 months; the Monetary Authority under §12.1, within 180 days; the Endowment Administrator under §12.5, within 12 months. Where the Legislature fails to meet a deadline, §3.9 applies: the LM publishes a compliance notice certifying the breach, and the responsible Monitor reports on the

unfilled mandate until the agency is established. The LM publishes a compliance notice when any establishment deadline is missed and again when the agency becomes operational. The Legislature may not permanently delegate a constitutionally required statutory function to an Monitor in lieu of establishing the required agency.

## Article XX — Associated Communities

### **§20.1 Associated Community Status**

Exclusively for sovereign entities — not a form of State or Territory status, not transitional, not incorporation. Available to nations that have completed the independence process under §15.7, to independent nations outside the Republic seeking a defined relationship, or to nations recognized as pre-existing sovereigns under Article XVI. Indigenous nations holding rights under Article XVI may not substitute an Article XX compact for their Article XVI compact relationship without first completing a status election under §16.7.a.

### **§20.2 Compact Terms and Equal Sovereignty**

Equal parties; neither constitutionally superior. Observing delegates attend Assembly and Senate proceedings relevant to the compact — speaking rights, no vote, no quorum or threshold effect. The Republic may not impose its constitutional governance architecture on an Associated Community as a condition of the compact relationship. Minimum democratic legitimacy requirements applicable to States do not apply to Associated Communities.

### **§20.3 Compact Conditions and Compliance**

No compact may be entered or ratified with any entity whose governance practices include, authorize, or systematically permit violations of any of the non-derogable rights established in §1.19.b, committed against any person within its jurisdiction. The Judicial Monitor assesses and reports on compliance with this condition before parliamentary ratification of any compact; a compact negotiated with a non-compliant entity is void regardless of parliamentary ratification. The JM conducts annual compliance reviews and publishes findings to the NRS. Where the JM finds systematic violations of the non-derogable rights under §1.19.b, the compact is suspended pending Supreme Court review. The Court may terminate the compact on confirmed systematic violations without remediation within a period the Legislature defines by statute. Economic value of the compact relationship is not a factor in JM assessment or Supreme Court review. Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address those relationships and may not require the Associated Community to eliminate or diminish pre-existing indigenous governance arrangements within its territory. Under §9.1, either chamber may request a JM assessment of compact compliance before proceeding to ratification. Compact suspension means the Associated Community's observer delegate participation rights are suspended for the duration of the review; all other compact obligations of both parties continue in effect pending the SC's determination.

### **§20.4 Sovereign Mobility**

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact and proceed as a fully independent sovereign nation. No Republic consent is required for compact



termination, and the Republic may not impose conditions on or penalties for the decision to terminate. Compact termination takes effect on a date not less than 12 months from the date the Associated Community publishes written notice of termination to the NRS, to allow orderly transition of any services the compact provides. Where the Associated Community's highest governance authority issues a formal ruling within the 12-month period that the termination decision was invalid under the community's own governance law, the community may withdraw the termination notice; the Republic acknowledges the withdrawal and the compact continues.

#### **§20.5 Reciprocal Obligations and Review**

The compact must specify with particularity the reciprocal obligations of both parties and the review mechanism. The Associated Community holds obligations to the Republic as well as rights from it. Review must be scheduled at regular intervals defined in the compact; either party may request a review outside the schedule by providing written notice to the NRS.

#### **§20.6 Compact Ratification**

A compact with an Associated Community requires Senate ratification by 2/3 of full seated membership, consistent with the treaty ratification threshold under §3.6. Both executives must transmit the proposed compact to the Senate simultaneously with a joint assessment of its consistency with this Article. Under §9.1, either chamber may request a JM assessment of compact compliance before proceeding to ratification. A ratified compact takes effect on the date specified in its terms and is registered to the NRS as a public record. Where the executives cannot agree on a joint assessment, each may publish a separate assessment to the NRS; the Senate receives both and may proceed to ratification on that basis.

#### **§20.7 Compact Continuity**

Compacts in force at the time of any government transition continue without interruption and bind successive governments of the Republic. No election result, change in the Republic's internal constitutional arrangements, or government transition affects the validity or standing of a compact in force. A new government may initiate renegotiation of a compact through the process the compact specifies but may not unilaterally suspend, modify, or withdraw from a compact pending renegotiation.